



CHAPTER lxxix.

An Act to authorise the Great Northern Railway Company to construct new railways and works and to acquire lands and to confer further powers upon that Company to authorise the construction of works at Peterborough by the Great Northern Railway Company to authorise the construction of widenings and other works and the acquisition of lands by the Great Northern Railway Company and the Great Central Railway Company to confirm the purchase of certain lands by the Great Northern and Great Eastern Joint Committee to authorise the acquisition by the Great Northern Railway Company of the undertaking of the Muswell Hill and Palace Railway Company and for other purposes. A.D. 1911

[18th August 1911.]

WHEREAS it is expedient that the Great Northern Railway Company (herein-after referred to as "the Company") should be authorised—

To make and maintain the railways widenings of railways and works herein-after described ;

To stop up and otherwise deal with certain roads and footpaths ;

To purchase and acquire lands and easements for those purposes and the general purposes of their undertaking and to hold for any of such purposes certain lands already purchased by or on behalf of the Company :

And whereas it is expedient that the Company should be authorised to construct certain street works at Peterborough herein-after described and that the powers with reference thereto contained in this Act should be conferred upon the Company :

A.D. 1911.

And whereas it is expedient that the Company and the Great Central Railway Company (in this Act called "the two companies") should be authorised jointly to make and maintain the widenings of their West Riding and Grimsby Railway and the further works herein-after described and to purchase and acquire lands for those purposes and the general purposes of their joint undertaking and to hold for any of such purposes certain lands already purchased by or on behalf of those companies and to exercise the other powers by this Act conferred upon them :

And whereas it is expedient that the purchase by the Great Northern and Great Eastern Joint Committee of certain lands in the rural district of Doncaster in the West Riding of the county of York should be sanctioned and confirmed and that the powers with reference thereto contained in this Act should be conferred upon the said joint committee :

29 & 30

Vict. c. cxc.
34 Vict. c.
xliii.

And whereas under powers conferred by the Muswell Hill Estate and Railways Act 1866 (herein-after referred to as "the Act of 1866") as varied by the Muswell Hill Estate and Railways Act 1871 the Muswell Hill Estate Company (Limited) (herein-after referred to as "the limited company") constructed certain railways in the county of Middlesex connecting with the railway of the Company and certain powers of running over and using the said railways of and of entering into traffic arrangements with the limited company were conferred upon the Company :

50 Vict. c.
xxxv.

And whereas by the Muswell Hill and Palace Railway Act 1886 a company was incorporated by the name of the Muswell Hill and Palace Railway Company (herein-after referred to as "the Palace Company") and the said railways constructed by the limited company were vested in the Palace Company and the capital of the Palace Company was declared to be seventy thousand pounds consisting wholly of capital stock to be deemed fully paid up and the Palace Company were authorised to borrow on mortgage or by the issue of debenture stock any sum or sums not exceeding in the whole ten thousand pounds :

And whereas the capital of the Palace Company now consists of ordinary stock to the said amount of seventy thousand pounds and the Palace Company have created and issued debenture stock to the said amount of ten thousand pounds and have issued bonds of indebtedness (which constitute a charge upon their undertaking) to the further amount of two thousand five hundred and thirty pounds :

[1 & 2 GEO. 5.] *Great Northern Railway Act, 1911.* [Ch. lxxix.]

And whereas the railways so vested in the Palace Company as
aforesaid are at present used exclusively by the Company and it is
expedient that the undertaking of the Palace Company should be
transferred to and vested in the Company and that the agreement
with reference thereto as set forth in the Fourth Schedule to this
Act should be confirmed and that upon such transfer and vesting
taking effect the Palace Company should be dissolved :

A.D. 1911.

And whereas the provisions contained in this Act with respect
to the transfer to and vesting in the Company of the undertaking of
the Palace Company have been assented to by the holders of the
said bonds of indebtedness and by the holders of upwards of three-
fourths of the amount of the said debenture stock :

And whereas by the Great Northern Railway Act 1898 (herein-
after referred to as " the Act of 1898 ") the Company were authorised
(inter alia) to construct certain railways in the counties of London
Middlesex and Hertford :

61 & 62
Viet. c. clxv.

And whereas by the Great Northern Railway Act 1899 (herein-
after referred to as " the Act of 1899 ") the Company were authorised
(inter alia) to construct certain other railways in the said counties
of Middlesex and Hertford including the Deviation Railway (No. 2)
herein-after referred to and to abandon certain of the said railways
authorised by the Act of 1898 and portions of certain other of the
railways so authorised :

62 & 63
Viet. c. ccii.

And whereas it is expedient that the Company should be autho-
rised to abandon certain other of the railways authorised by the Act
of 1898 and certain of the railways authorised by the Act of 1899
and a portion of another railway authorised by the Act of 1899 as
well as certain railways authorised by the Great Northern Railway
Act 1894 and the Great Northern Railway Act 1895 respectively :

57 & 58
Viet. c. lxxv.
58 Viet.
c. xxxvi.

And whereas the periods respectively limited by the Act of 1898
and the Act of 1899 for the completion of the railways thereby
authorised have expired and it is expedient that the powers conferred
upon the Company of constructing the said railways authorised by
the Act of 1898 (except the railways and portions of railways so
authorised which the Company either were by the Act of 1899 or are
by this Act authorised to abandon) and the said Deviation Railway
(No. 2) authorised by the Act of 1899 (except the portion of that
railway which the Company are by this Act authorised to abandon)
should be revived :

And whereas by the Great Central Railway Act 1907 (herein-
after referred to as " the Act of 1907 ") the two companies were

7 Edw. 7.
c. lxxviii.

A.D. 1911. — authorised to construct certain railways in the West Riding of the county of York and to acquire compulsorily the lands required for the purposes thereof :

And whereas the period limited by the Act of 1907 for the completion of the said authorised railways is about to expire and the period limited by the said Act for the compulsory acquisition of lands has recently expired and it is expedient that the time for the completion of the Railway (No. 8) authorised by the Act of 1907 should be extended and that the powers conferred upon the two companies by the Act of 1907 for the compulsory acquisition of lands for the purposes of that railway should be revived :

And whereas it is expedient that the Company should be authorised to raise additional capital for the purposes of this Act and other the general purposes of their undertaking :

And whereas it is expedient that the other provisions hereinafter contained should be made :

And whereas plans and sections showing the lines and levels of the railways and works authorised by this Act and the lands to be taken for the purposes thereof and plans of the additional lands authorised to be taken or held under the powers of this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of all such lands so far as those documents relate to lands in each county or division herein-after mentioned were duly deposited with the clerks of the peace for the counties of London Middlesex Hertford Bedford Huntingdon Northampton Nottingham Derby and Stafford and for the parts of Holland the parts of Kesteven and the parts of Lindsey in Lincolnshire and the West Riding of the county of York and the soke of Peterborough and the said documents are herein-after respectively referred to as "the deposited plans sections and books of reference" :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.—INTRODUCTORY.

Short title 1. This Act may be cited as the Great Northern Railway Act 1911.

2. This Act is divided into Parts as follows:—

A.D. 1911.

Act divided
into Parts.

Part I. Introductory.

Part II.—Construction of Works by the Company.

Part III.—Street Works at Peterborough.

Part IV.—Powers to the Company with reference to
Lands.

Part V.—Powers to the Two Companies.

Part VI.—Powers to the Joint Committee.

Part VII.—Purchase of Palace Undertaking.

Part VIII.—Revival of Powers and Extension of Time.

Part IX. Abandonment of Railways.

Part X.—Provisions applicable to the Company and the
Two Companies.

Part XI.—Financial Provisions.

Part XII.—Miscellaneous Provisions.

3. The following Acts and parts of Acts are (except where the same are expressly varied by or are inconsistent with the provisions of this Act) incorporated with and form part of this Act namely:—

Incorporation of
general Acts.

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845; and

Part I. (Construction of a Railway) Part II. (Extension of Time) and Part V. (Amalgamation) of the Railways Clauses Act 1863.

4. Subject to the provisions of this Act the provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

Applying
certain provisions of
Companies
Clauses
Acts.

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

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The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and Parts I. II. and III. of the Companies Clauses Act 1863 relating respectively to the cancellation and surrender of shares to additional capital and to debenture stock as amended by subsequent Acts shall be applicable to the capital and moneys hereby authorised to be raised by shares or stock or mortgage and to the proprietors thereof.

Interpreta-
tion.

5. In this Act—

The several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction;

The expressions “parish clerks” and “clerks of the several parishes” in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs;

The expression “the Company” means the Great Northern Railway Company;

The expression “the Midland Company” means the Midland Railway Company;

The expression “the two companies” means the Company and the Great Central Railway Company;

The expression “the joint committee” means the Great Northern and Great Eastern Joint Committee constituted by the Great Northern and Great Eastern Railway Companies Act 1879;

The expression “the new railways” means the new railways and works connected therewith by this Act authorised to be constructed by the Company;

The expression “the Great Northern widenings” means the widenings of railways and works connected therewith by this Act authorised to be constructed by the Company;

The expression “the two companies’ widenings” means the widenings of railway and works connected therewith by this Act authorised to be constructed by the two companies;

[1 & 2 GEO. 5.] *Great Northern Railway Act, 1911.* [Ch. lxxix.]

The expressions "the Act of 1898" and "the Act of 1899" A.D. 1911.
mean respectively the Great Northern Railway Act 1898
and the Great Northern Railway Act 1899;

The expression "the Palace Company" means the Muswell
Hill and Palace Railway Company;

The expression "the date of transfer" means in relation to
the provisions of Part VII. of this Act the fourteenth day
of August one thousand nine hundred and eleven;

The expression "the Palace Undertaking" includes—

(A) The whole of the railways belonging to the Palace
Company with all stations buildings works conveniences
equipment plant and appliances appertaining thereto
together with such interest (if any) as the Palace Com-
pany may have in the booking offices and other rooms
in the Alexandra Palace which are used in connection
with the undertaking but are or are reputed to be the
property of the Alexandra Park Trustees;

(B) All lands and property immediately before the
date of transfer vested in or belonging to the Palace
Company (whether such lands and property shall then
have been utilised or applied for the purposes of the
Palace Undertaking or not) and all rights and easements
belonging to the Palace Company or appurtenant to such
lands and property;

(C) The benefit of all contracts and agreements entered
into by the Palace Company;

(D) All powers privileges authorities exemptions and
all other rights and interests of the Palace Company
whatsoever whether statutory or otherwise except any
unexercised powers of the Palace Company of raising
capital;

(E) All estates matters and things of every kind and
description belonging to the Palace Company except
such sums of money as are payable by the Company to
the Palace Company under the agreement as set forth
in the Fourth Schedule to this Act and any moneys in
hand or due to the Palace Company on the date of
transfer;

A.D. 1911.

The expression "the liquidator" means the liquidator to be appointed by the Palace Company pursuant to the provisions of the Companies (Consolidation) Act 1908 as applied by Part VII. of this Act for the purpose of winding up the affairs of the Palace Company and distributing the assets of that company and includes his duly appointed successor for the time being.

PART II.—CONSTRUCTION OF WORKS BY THE COMPANY.

Power to
Company to
make new
railways
widening
&c.

6. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the new railways widenings of railways (including in such widenings of railways the altering and improving of and the laying down of additional lines of rails upon any such railways) and works herein-after described with all proper stations junctions lines of rail sidings approaches roads works and conveniences connected therewith respectively.

The new railways widenings and works herein-before referred to and authorised by this Part of this Act are the following (that is to say) :—

NEW RAILWAYS.

RAILWAYS AT KNEBWORTH.

- A Railway (No. 1) (7 furlongs 8·80 chains or thereabouts in length) wholly in the county of Hertford commencing in the parish of Datchworth by a junction with the Deviation Railway (No. 2) authorised by the Act of 1899 and terminating in the parish of Knebworth on the west side of and immediately adjacent to the Great North Road at a point about eight chains northward of the mile post on the said road denoting twenty-nine miles from London ;
- A Railway (No. 2) (5 furlongs 5 chains or thereabouts in length) commencing in the said parish of Knebworth by a junction with the Railway (No. 1) by this Act authorised at its termination and terminating in the parish of Stevenage in the said county of Hertford by a junction with the down lines of the Company near the bridge carrying the public road from Knebworth to Stevenage over the Company's main line ;
- A Railway (No. 3) (5 furlongs 4·20 chains or thereabouts in length) commencing in the said parish of Knebworth by a

junction with the said Railway (No. 1) at its termination and terminating in the said parish of Stevenage by a junction with the up lines of the Company near the said bridge : A.D. 1911.

RAILWAY TO HARWORTH.

- A Railway (No. 4) (2 miles 7 furlongs 4 chains or thereabouts in length) wholly in the county of Nottingham commencing in the parish of Harworth on the eastern side of the public road leading from Harworth to Blyth and terminating in the parish of Scrooby by a junction with the up main line of the Company near the mile post denoting one hundred and forty-five miles from London ;
- A Railway (No. 4A) (7·30 chains or thereabouts in length) wholly in the said parish of Scrooby commencing by a junction with the Railway (No. 4) by this Act authorised near the main line of railway of the Company at a point about thirteen chains northward of the mile post lastly herein-before referred to and terminating by a junction with the down main line of the Company at a point about twenty and a half chains northward of the said mile post ;
- A Railway (No. 4B) (4 furlongs or thereabouts in length) wholly in the said parish of Scrooby commencing by a junction with the said Railway (No. 4) at the commencement of the Railway (No. 4A) by this Act authorised and terminating near the said main line of railway at a point about thirteen chains northward of the mile post denoting one hundred and forty-five and a half miles from London ;
- A Railway (No. 4C) (3 furlongs 5·40 chains or thereabouts in length) wholly in the said parish of Scrooby commencing by a junction with the said Railway (No. 4) near the main line of railway of the Company at a point about twelve and a quarter chains northward of the said mile post denoting one hundred and forty-five miles from London and terminating near the said main line at a point about twenty-three chains southward of that post :

RAILWAY AT SHAFTHOLME.

- A Railway (No. 5) (6 furlongs 6·80 chains or thereabouts in length) wholly in the West Riding of the county of York commencing in the parish or township of Bentley-with-Arksey by a junction with the main line of the Company at

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a point about ten and a half chains northward of the crossing of the said railway on the level by the Shaftholme Road and terminating in the township of Thorpe-in-Balne by a junction with the Railway (No. 1) authorised by the Hull and Barnsley Railway Act 1909:

WIDENINGS AND IMPROVEMENTS OF EXISTING RAILWAYS.

WIDENING AT FINSBURY PARK.

A Widening of the main line of railway of the Company commencing in the parish and metropolitan borough of Islington in the county of London by a junction with the down goods lines of the Company near the bridge carrying the said goods lines over the Seven Sisters Road and terminating in the parish and borough of Hornsey in the county of Middlesex by a junction with the said down goods lines of the Company near the bridge carrying the said goods lines over the Stroud Green Road:

WIDENINGS AT PETERBOROUGH.

A Widening No. 1 commencing in the parish of Fletton Rural in the county of Huntingdon by a junction with the down main lines of the Company near the Fletton Junction signal box and terminating in the parish of Peterborough Within in the soke of Peterborough in the county of Northampton near the fast main lines of the Company at a point about four and a half chains northward of the mile post denoting seventy-six miles from London;

A Widening No. 2 of the main line of the Company wholly in the said parish of Peterborough Within commencing at the termination of the Widening No. 1 by this Act authorised and terminating by a junction with the main lines of the Company about nineteen and a half chains southward of the bridge carrying Westwood Road over the railway of the Company:

WIDENING FROM SAXONDALE JUNCTION TO RADCLIFFE.

A Widening of the Nottingham and Grantham Railway on the up side thereof wholly in the county of Nottingham commencing in the township of Saxondale by a junction with the said railway near the signal box at Saxondale

Junction and terminating in the parish of Radcliffe-on-Trent by a junction with the said railway opposite the signal box at Radcliffe Station : A.D. 1911.

WIDENING FROM DONCASTER TO SHAFTHOLME JUNCTION.

A Widening of the main line of the Company wholly in the West Riding of the county of York commencing in the township and borough of Doncaster by a junction with the said main line near the mile post at Doncaster Station denoting one hundred and fifty-six miles from London and terminating in the township of Owston by a junction with the railway of the North Eastern Railway Company which extends from the Shaftholme Junction of the railways of that company and the Company respectively to York at a point about seven and a half chains northward of the said Shaftholme Junction.

7. The new railways and the Great Northern widenings shall for all purposes including tolls rates and charges form part of the undertaking of the Company Provided always that the widening from Saxondale Junction to Radcliffe by this Act authorised shall for the purposes of tolls rates and charges be deemed to form part of that part of the undertaking of the Company which is referred to in the Great Northern Railway Company (Rates and Charges) Order Confirmation Act 1891 as the Nottingham and Grantham Branch. Tolls &c.
on new
railways
and Great
Northern
widenings.

8. If the new railways be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for making and completing the new railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for
completion
of new
railways.

9. If the Company fail within the period limited by this Act to complete the new railways the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway in the completion of which default is made is completed and opened for traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of such railway and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 And every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in Penalty
unless new
railways
are opened
within
time limited.

A.D. 1911. the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening such railway by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

10. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the new railways or any portion thereof respectively or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act for the purposes of such railway and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the Company.

Inclination
of road
altered by
Company.

11. In altering for the purposes of this Act the road next herein-after mentioned the Company may make the same of any inclination not steeper than the inclination herein-after mentioned in connection therewith (that is to say) :—

Work.	No. on Deposited Plan.	Parish or Township.	Description of Road.	Intended Inclination.
Widening from Saxondale Junction to Radcliffe.	11 1	Saxondale - Radcliffe-on-Trent	} Public carriage road	1 in 18

12.—(1) The Company may make the arches of the bridges for carrying the new railways over the road numbered on the deposited plans 12 in the parish of Knebworth of any height not less than fifteen feet and of any span not less than twenty-five feet.

A.D. 1911.
Height and span of bridges constructed by Company.

(2) The Company may make the arches of the bridges for carrying the Great Northern widenings over any roads of any heights and spans not less than the heights and spans of the bridges carrying the existing railway over such roads respectively.

13. Subject to the express provisions of this Act the Company may make the roadway over the bridges by which any roads will be carried over the Great Northern widenings of such width between the fences thereof as the Company think fit not being less than the width of the roadway over the bridges by which such roads are respectively carried over the existing railway.

Width of roadways over bridges constructed by Company.

14.—(1) The Company may divert the roads and public footpath referred to in the next following table in the lines shown upon the deposited plans and (as regards such roads) according to the levels shown upon the deposited sections (that is to say) :—

Power to Company to divert roads and footpath.

Work.	Parish or Township.	No. of Road or Footpath on Plan.
Railway (No. 4b) - - -	Serooby - - -	36 (public footpath).
Widening from Doncaster to Shaftholme Junction.	{ Bentley-with-Arksey Do. - - -	61 & 62 (public carriage roads). 96 & 2 (public carriage roads).

(2) The Company may in connection with the construction of the Railways (No. 2) and (No. 3) by this Act authorised divert the road delineated on the deposited plans and thereon numbered 12 in the parish of Knebworth in accordance with the plan and section referred to in sub-section (5) of the section of this Act of which the marginal note is “For protection of Hertfordshire County Council.”

(3) Subject to the provisions of this Act the Company may stop up and cause to be discontinued as a road or footpath so much of each of the said existing roads or footpath as will be rendered unnecessary by the new portion of road or footpath shown on the deposited plans or on the plan referred to in the said sub-section (5) (as the case may be).

15. Subject to the provisions of this Act the Company may in the lines and according to the levels shown on the deposited plans

Power to Company to widen bridges.

A.D. 1911. and sections make and maintain the widenings of bridges herein-
after described (that is to say) :—

WIDENING OF BRIDGE AT WOOD GREEN.

The Company may in the parish of Wood Green in the county of Middlesex widen on the eastern side thereof the bridge carrying their main line over the road (forming an extension in a westerly direction of Coburg Road) and footpath which lead from Western Road under the railway of the Company to Newland Road :

WIDENING OF BRIDGE OVER CHURCH STREET LUTON.

The Company may in the parish of Luton in the county of Bedford widen on the southern side thereof the bridge carrying their Luton and Dunstable Branch Railway over the public roads known as Church Street and Hitchin Road or one of them.

Further
work by
Company.

16. Subject to the provisions of this Act the Company may make in the lines and according to the levels shown on the deposited plans and sections the work next herein-after described and may exercise the powers herein-after referred to in connection with that work (that is to say) :—

DIVERSION OF MOTHER DRAIN.

The Company may in the West Riding of the county of York alter and divert the course of the stream or drain known as "the Mother Drain" such alteration and diversion commencing in the township or parish of Loversall at the point at which the said stream or drain is crossed by the bridge carrying the main line of the railway of the Company over the same and terminating in the parishes of Cantley and Rossington or one of them at a point in the said Mother Drain near the mile post on the said main line denoting one hundred and fifty-two and a quarter miles from London and may stop up and discontinue so much of the said existing stream or drain as lies between the respective points of commencement and termination of the said alteration and diversion ;

and upon such stopping up all rights in the portion of the existing stream or drain so stopped up shall by virtue of this Act be extinguished and the Company may subject to the provisions of the

Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the bed and banks of the portion of the existing stream or drain so stopped up and the site and soil thereof. A.D. 1911.

17.—(1) Subject to the provisions of this Act the Company may stop up— Power to Company to stop up streets and footpaths.

(A) The street in the parish and metropolitan borough of St. Pancras in the county of London known as Congreve Street ;

(B) The road in the parish of Wood Green in the county of Middlesex known as The Grove ;

(C) So much of the footpath in the said parish of Wood Green leading from Western Road under the railway of the Company to Newland Road as lies between the junction of Western Road with The Grove and the point at which the said footpath joins the road forming an extension in a westerly direction of Coburg Road ;

(D) So much of the public footpath in the parish of Enfield in the county of Middlesex leading from Green Lanes to Green Dragon Lane as lies between the junction of the said footpath with the road known as the Grange Way about one chain east of the bridge carrying the railway of the Company over the said Grange Way and a point on the said footpath about one and a half chains north-eastward of the crossing of the Salmon's Brook by the said footpath.

(2) Upon the stopping up of the said street road and portions of footpaths respectively all rights of way over the street road or portion of footpath so stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site and soil of such street road or portion of footpath.

18. For the protection of the Bedfordshire County Council and the mayor aldermen and burgesses of the borough of Luton the following provision shall unless otherwise agreed between the Company and the Bedfordshire County Council and the said mayor For protection of Bedfordshire County Council and mayor

A.D. 1911. aldermen and burgesses apply and have effect in the exercise of the powers of this Act (that is to say) :—

aldermen
and bur-
gesses of
borough of
Luton.

Notwithstanding anything contained in this Act or shown upon the deposited plans the widening by this Act authorised of the bridge carrying the Luton and Dunstable Branch Railway of the Company over the public road known as Church Street shall have a span of not less than forty feet measured at right angles to the abutments thereof and the westerly abutment of the said widening shall be in line with the westerly abutment of the existing bridge.

Extending
powers of
Great
Eastern
Railway
Company.

19. All rights powers and privileges which the Great Eastern Railway Company possess or are entitled to in respect of the railway of the Company between Doncaster and Shaftholme Junction shall extend and apply to the widening of that railway by this Act authorised.

For protec-
tion of
Great
Central Rail-
way Com-
pany.

20. The Great Central Railway Company shall have and be entitled to the same rights powers and privileges in respect of the railways and widening herein-after specified as they now have or are entitled to in respect of the main line of the Company from Retford to Shaftholme Junction under two agreements dated respectively the thirtieth day of January one thousand eight hundred and ninety-two and the ninth day of June one thousand eight hundred and ninety-four and made between the Great Central Railway Company (by their then name of the Manchester Sheffield and Lincolnshire Railway Company) and the Company.

The said railways and widening are—

- (i) Railways Nos. 4 4A 4B and 4C ;
- (ii) Railway No. 5 ;
- (iii) The widening from Doncaster to Shaftholme Junction.

For protec-
tion of
county
council of
county of
Nottingham.

21. For the protection of the county council of the county of Nottingham the following provision shall unless otherwise agreed between the Company and the said council apply and have effect in the exercise of the powers of this Act :—

Notwithstanding anything contained in this Act or shown upon the deposited plans the bridge for carrying the Great North Road in the parish of Scrooby over Railway No. 4 by this Act authorised shall have a width between the parapets thereof of not less than fifty feet measured at right angles to such parapets.

22. For the protection of the urban district council of Enfield (in this section called "the council") the following provisions shall apply and have effect in the exercise of the powers of this Act:—

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For protection of
Enfield
Urban
District
Council.

(1) The Company shall not stop up the portion of the footpath leading from Green Lanes to Green Dragon Lane between the points marked "A" and "B" on the deposited plans until a substituted footpath has been opened to the public between the same points by way of the road known as the Grange Way and the road now in course of construction in extension in a northerly direction of the road known as the Chine:

(2) Notwithstanding such substitution as aforesaid the council shall not be liable to repair such substituted footpath unless and until the said road known as the Grange Way and the said road now in course of construction shall be declared by the council highways repairable by the inhabitants at large.

23. Notwithstanding anything contained in this Act the following provision for the protection and benefit of the mayor aldermen and citizens of the city of Nottingham shall unless otherwise agreed in writing between the said mayor aldermen and citizens and the Company have effect (that is to say):—

For protection of
corporation
of Nottingham.

The Company shall not under the powers of this Act break up or interfere with the road known as Chestnut Grove in the parish of Radcliffe-on-Trent in the rural district of Bingham in the county of Nottingham or any portion of such road.

24. For the protection of the Right Honourable George Edward Stanhope Molyneux Earl of Carnarvon the following provision shall apply and have effect:—

For protection of Lord
Carnarvon.

Notwithstanding anything contained in this Act or shown upon the deposited plans the Company shall not under the powers of this Act lay down any additional line of rails on or over the occupation level crossing of the Nottingham and Grantham Railway which is situated immediately to the

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west of Saxondale Junction without the previous consent in writing of the said Earl of Carnarvon or his successors in title.

For protec-
tion of
Metropolitan
Water
Board.

25. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall have effect unless otherwise agreed in writing between the board and the Company :—

- (1) Wherever by reason or in consequence of the stopping up under the powers of this Act of any thoroughfare any apparatus of the board situate in or under the thoroughfare so stopped up shall be rendered derelict or unnecessary the Company shall forthwith after such stopping up pay to the board such a sum as may be agreed between the board and the Company or as failing such agreement may be determined by arbitration as herein-after provided to be the value of—

(A) The apparatus situate in and under the thoroughfare so stopped up; and

(B) Any apparatus of the board connected with the said apparatus and used exclusively for the purpose of the supply of water to any premises to which a supply is furnished by means of the apparatus in and under the thoroughfare stopped up;

and all such apparatus shall upon such payment become the property of the Company:

- (2) In addition to the payment referred to in the last preceding sub-section the Company shall pay to the board their charges of and incidental to the cutting off of any such apparatus as is referred to in the said sub-section from any other apparatus of the board and of and incidental to any other works or things rendered necessary in consequence of any apparatus of the board being rendered derelict or unnecessary by the stopping up of any thoroughfare so stopped up:

- (3) If any difference shall arise under this section between the board and the Company the same shall be referred to and determined by an arbitrator to be agreed upon

- between them or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference. A.D. 1911.

26. In the execution of the works and exercise of the powers authorised or conferred by the Act of 1898 the Act of 1899 and this Act the following provisions for the protection of the Hertfordshire County Council (in this section called "the county council") shall notwithstanding anything contained in the said Acts have effect (that is to say) :—

For
protection
of Hert-
fordshire
County
Council.

- (1) The Company shall not commence or execute any works so far as they affect any main road or bridge which the county council are bound to maintain or repair and so far also as they affect any road or bridge to the maintenance or repair of which the county council may contribute until one month after they have delivered to the surveyor for the time being of the county council (herein-after in this section called "the said surveyor") plans and sections of the works intended to be executed And if the said surveyor shall by writing under his hand signify his disapproval of such works within one month after such plans and sections shall have been delivered to him then the Company shall not commence or execute any such works unless and until plans and sections thereof shall have been approved by an engineer to be agreed or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of the Company after notice to the said surveyor :
- (2) The Company shall execute all such works as aforesaid at their sole expense and in accordance with the plans and sections as delivered to the said surveyor or as approved by the said engineer as the case may be and under the superintendence and to the reasonable satisfaction of the said surveyor :
- (3) The spans and headways of the bridges to be constructed under the Act of 1898 and the Act of 1899 over the highways herein-after mentioned shall be not less than and the alterations (if any) in the levels and gradients

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of the roads thereunder shall not exceed or be steeper than the following:—

Railway.	Parish.	Ref. No.	Square Span.	Headway.	Level where lowered.	Gradients.
UNDER THE ACT OF 1898.						
No. 1.	Bayford - - -	32	42 ft.	16 ft.	Unaltered.	} East 1 in 100. West 1 in 50.
No. 1.	St. Andrew Hertford	10	36 ft.	16 ft.	Unaltered.	
No. 2.	St. Andrew Hertford	24	38 ft.	16 ft.	2 ft. 2 in.	
No. 2.	Stapleford - - -	6	30 ft.	15 ft.	Unaltered.	
No. 2.	Stapleford - - -	11	35 ft.	16 ft.	5 ft. 4 in.	1 in 100.
UNDER THE ACT OF 1899.						
No. 1.	Hatfield Cheshunt -	{ 4 } 30	35 ft.	16 ft.	Unaltered.	} North 1 in 166. South 1 in 30.
No. 2.	Datchworth - - -	17	30 ft.	16 ft.	Unaltered.	
No. 2.	Datchworth - - -	22	30 ft.	15 ft.	14 ft. 2 in.	

(4) The bridges to be constructed under the Act of 1898 and this Act for carrying the highways herein-after mentioned over the railways shall be of not less width between the parapets and the gradients of the approaches thereto shall not exceed the following:—

Railway.	Parish.	Ref. No.	Width between Parapets.	Level where raised.	Gradients.
UNDER THE ACT OF 1898.					
No. 2.	Watton - - -	21	25 ft.	8 ft. 4 in.	{ East 1 in 20. West 1 in 60.
UNDER THIS ACT.					
No. 2.	Knebworth - - -	7	40 ft.	Unaltered.	

(5) Notwithstanding anything shown on the deposited plans the Company shall carry out the intended diversion of the road between Broadwater and Knebworth numbered on the said plans 12 in the parish of Knebworth in accordance with the plan and section marked "D" which has been signed in duplicate by the Honourable Walter Edward Guinness the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one in the Parliament Office of the House of Lords and which plan is herein-after called "the signed plan") and shall construct the new portion

of the road throughout of the width of twenty-five feet at the least and shall construct bridges carrying the railways and the existing railways of the Company over the new portion of the road each with a span of not less than twenty-five feet measured on the square and a headway of not less than fifteen feet The Company shall also construct and lay such surface drains as the said surveyor shall reasonably require for effectually draining the road under any of the last-mentioned bridges As soon as the said diversion of the said road shall have been constructed the Company may stop up and cause to be discontinued as a road so much of the existing road as lies between the points marked " B " and " C " on the signed plan :

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- (6) The Company shall construct a footpath on the western side of their existing line from the new portion of the said road to the existing footpath from Broadwater to Knebworth in the line shown upon the said plan and after the construction thereof the Company may and shall stop up and discontinue as a footpath so much of the said existing footpath as lies between the points marked " D " and " E " on the signed plan :
- (7) The bridle path leading from Ashbottom Cottages to Knebworth and numbered on the deposited plans 1 in the parish of Knebworth shall be carried under the railway by means of a subway not less than eight feet in width and not less than ten feet in height :
- (8) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not stop up or interfere with the main road numbered on the said plans 24 in the parish of Knebworth and shall leave or dedicate to the public as part of the highway such of the land adjoining the said main road and numbered on the said plans 25 in the said parish as may be necessary to make the width of such road thirty feet but the county council shall at their own expense make up and thereafter maintain the said land as part of the said road :
- (9) Every bridge to be constructed by the Company for carrying the railways over any highway within the county of Hertford shall be made and maintained so far as is

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practicable in such manner as to prevent the dripping of water therefrom on any part of such highway or the footway thereof :

- (10) All main roads within the county of Hertford including the drains gullies and footpaths which shall be broken up or disturbed by the Company shall be reinstated by them as soon as reasonably practicable and every part of such roads drains gullies and footpaths so taken up or disturbed shall be kept in repair by the Company for a period of twelve months after their reinstatement :
- (11) The Company shall be responsible for and make good to the county council all costs losses damages and expenses which they may incur or be put to or sustain by reason of the execution or failure of any of the intended works or of any act or omission of the Company or of any of their contractors agents workmen or servants or of any of the persons in their employ or in the employ of their contractors or other persons aforesaid and the Company shall effectually indemnify the county council and hold them harmless in respect of all claims and demands upon or against them by reason of such execution or failure or of any such act or omission Provided always that the Company shall not be liable for any such costs losses damages or expenses if the same shall be occasioned by anything done or not done in compliance with any requirement of the county council :
- (12) In this section the expression "the railways" means the new railways authorised by the Act of 1898 and the Act of 1899 or this Act or any of such railways :
- (13) Any difference which may arise between the Company and the county council as to the true intent and meaning of any of the provisions of this section or as to the mode of giving effect thereto or anything to be done or not to be done hereunder shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties by the President of the Institution of Civil Engineers :
- (14) Section 34 of the Act of 1898 and section 18 of the Act of 1899 are hereby repealed.

For protec-
tion of North
Eastern
Railway
Company.

27.—(1) The North Eastern Railway Company (herein-after called "the North Eastern Company") shall have and be entitled to the same rights powers and privileges in respect of the widening of

the Company's main line from Doncaster to Shaftholme Junction by this Act authorised as they now have or are entitled to in respect of the portion of the said railway authorised to be widened. A.D. 1911.

(2) The Company shall not without in every case the previous consent in writing of the North Eastern Company enter upon or interfere with any lands railways sidings or other works belonging to or worked by the North Eastern Company except that the Company may purchase and take and the North Eastern Company may and shall sell and grant such an easement over the same as shall be necessary for the purpose of varying the junction of the North Eastern Company's railway with the railway of the Company as widened in accordance with the plans to be approved as provided by the next following sub-section.

(3) The works of the said widening where they adjoin or interfere with the junction between the railways of the Company and the North Eastern Company at Shaftholme Junction and any variation of such junction shall be carried out in such a manner as on the completion of the works shall leave the North Eastern Company in as good a position for interchanging traffic with the Company as they are at present and according to plans previously submitted to and reasonably approved by the engineer of the North Eastern Company or in case of difference between the Company and the North Eastern Company to be approved by an arbitrator to be appointed as herein-after provided. If the North Eastern Company give to the Company notice that they themselves desire to construct so much of the works of the said widening or to carry out so much of the alterations as will affect the running lines of the North Eastern Company the North Eastern Company may themselves execute the said works and recover the reasonable cost thereof from the Company.

(4) The Company shall take all possible precautions in the execution of their works to prevent so far as reasonably practicable any interference with the free and uninterrupted and safe use in the ordinary manner of any railway siding or other work belonging to the North Eastern Company.

(5) The Company shall bear and on demand pay to the North Eastern Company the expense of the employment by the North Eastern Company during the execution of any work affecting any railway siding or other work of the North Eastern Company of a sufficient number of inspectors watchmen and signalmen to be appointed by the North Eastern Company for watching and signalling the same with reference to and during the execution of any

A.D. 1911. — such work of the Company and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employ of the Company or their contractors with reference thereto or otherwise and if by reason of the construction of the said widening and the works connected therewith it shall become necessary to add to or alter any signal or any electrical telegraphic or telephonic appliance upon the said railways of the North Eastern Company the same shall be so added to or altered by the North Eastern Company and the reasonable expense thereof shall be repaid to the North Eastern Company by the Company.

(6) The Company shall also bear and on demand pay to the North Eastern Company any additional expense in working or maintaining the junction with the railway of the Company and the signals and conveniences incident to the junction which the North Eastern Company shall incur or be put to by reason or in consequence of the construction maintenance or user of the said widening or the works connected therewith.

(7) If by reason of the execution of any of the works or the failure of any such works or any act or omission of the Company or of their contractors or of any person in the employ of the Company or of their contractors or otherwise any railway siding or other work of the North Eastern Company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do then the North Eastern Company may make good the same and recover the expense thereof against the Company.

(8) The Company shall at all times take all reasonable precautions in carrying out the works by this Act authorised so as not injuriously to affect any of the North Eastern Company's pipes or structures or to interfere with the working of any wire line or apparatus used by the North Eastern Company for the purpose of telegraphic telephonic or electric signalling communication.

(9) If any difference shall arise between the Company and the North Eastern Company under the provisions of this section such difference shall be referred to and determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

28. For the protection of the Sheffield and South Yorkshire Navigation Company (in this section called "the navigation company") the following provisions shall unless otherwise agreed between the Company and the navigation company have effect in the exercise by the Company of the powers of this Act (that is to say) :—

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For protection of Sheffield and South Yorkshire Navigation Company.

- (1) The Company shall construct and maintain the bridge for carrying the widening of their railway from Doncaster to Shaftholme Junction by this Act authorised over the River Don New Cut of the navigation company at Doncaster aforesaid as a girder bridge of one span with a clear width between the abutments sufficient to carry the said bridge over the present waterway and over the towing paths on the north and south sides of the waterway each of which shall be not less than nine feet wide and the underside of the girders of the said bridge shall not be constructed at a lower level than the underside of the girders of the existing bridge carrying the main line of the railway over the said Cut (herein-after called "the navigation") and the Company shall from time to time and at all times at their own expense maintain the said towing paths respectively (under the said bridge) for a distance of seventy feet from the centre of the existing bridge in an easterly direction :
- (2) The Company shall construct and from time to time and at all times thereafter maintain a roadway not less than five feet wide from the towing path on the south side of the navigation to and from French Gate for the use of boatmen and their horses engaged on the navigation :
- (3) The Company shall construct and maintain the bridge for carrying the said widening over the Flood Drain (known as the River Don) of the navigation company at Doncaster aforesaid in accordance with plans to be agreed upon between the engineer of the navigation company and the engineer of the Company Provided always that the underside of the girders of the said bridge shall not be constructed at a lower level than the underside of the girders of the existing bridge of the Company carrying the main line of the railway over the said Flood Drain and that openings shall be left similar to those in the said existing bridge in order to give access to the adjoining lands of the navigation company :

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- (4) The Company shall at all times hereafter maintain the said bridges of the minimum headways of the existing bridges of the Company above the present ordinary level of the water :
- (5) The foundations of the piers or abutments of the said bridges shall be carried down to such depths below the ordinary level of the surface of the water in the navigation and the Flood Drain respectively and shall be placed in such positions as shall be reasonably fixed by the engineer for the time being of the navigation company or in case of difference settled by arbitration as hereinafter provided :
- (6) The Company as well during the construction as during any repairs of the bridge over the navigation shall leave the navigable waterway and towing paths free and uninterrupted except so far as shall be reasonably agreed between the navigation company and the Company :
- (7) The Company shall during the construction of the last-mentioned bridge exhibit every night from sunset to sunrise a light or lights which shall be kept burning by and at the expense of the Company for the guidance of vessels using the navigation. Such light or lights shall be of such description and be so used and placed as the navigation company in writing shall reasonably require :
- (8) All works crossing or affecting the navigation shall be carried on uninterruptedly when commenced and shall be completed with all reasonable despatch and all scaffolding piling and materials affecting the waterway or towing paths shall be removed as soon as the work for which they were required has been completed and in the meantime shall be kept in proper repair and well and sufficiently lighted :
- (9) All works crossing or affecting the navigation shall be constructed and maintained so that the traffic of the navigation shall not except as herein expressly provided be in any way obstructed impeded or interfered with and such maintenance shall be effected under the superintendence and to the reasonable satisfaction of the navigation company but in all things at the expense of the Company :

- (10) The Company shall bear and on demand pay to the navigation company the reasonable expense of the employment by the navigation company of a sufficient number of inspectors and watchmen to watch the navigation during the construction of the works by this Act authorised crossing or in any way affecting the navigation and for preventing (except as aforesaid) any such obstruction or interference or any danger or accident from the acts or default of the Company or their contractors or the servants workmen or other persons in their respective employ : A.D. 1911.
- (11) If by reason of the execution or maintenance of any of the works or any proceedings of the Company or any act or omission of the Company or their contractors or of any officer servant or workman or other person employed by the Company or such contractors the navigation or any of the works thereof be injured or damaged such injury or damage shall forthwith be made good by the Company at their own cost and in default thereof the navigation company may make good the same and recover the reasonable cost thereof :
- (12) The Company shall indemnify the navigation company from any loss or damage they may suffer and from any compensation they may be required to pay for any such obstruction (except as aforesaid) interruption or interference with the traffic of the navigation or any accident which shall have been occasioned by any such act or default as in this section is mentioned :
- (13) Nothing in this section shall extend to prevent the navigation company or any owner of vessels boats keels or barges using the navigation from recovering from the Company any special damage that shall be sustained by them or him for or in consequence of any such act or default as in this section is specified :
- (14) Any works which may be constructed by the Company under the powers of this Act over or affecting any of the waterways canals or drains of the navigation company shall be carried out under the supervision and to the reasonable satisfaction of the engineer of the navigation company and in accordance with plans sections and specifications previously submitted to and

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reasonably approved of by such engineer or in case of difference settled by arbitration as herein-after provided :

(15) Notwithstanding anything contained in this Act or shown upon the deposited plans the Company shall not purchase or take any lands belonging to the navigation company except by agreement with the navigation company but the Company may purchase and take and the navigation company shall sell and grant to the Company accordingly an easement or right of using the same so far as may be necessary for the purpose of carrying the said widening across the navigation and Flood Drain respectively :

(16) If any difference arise between the Company and the navigation company under this section such difference shall be determined by an engineer to be appointed (unless otherwise agreed on) on the application of either party by the President of the Institution of Civil Engineers but nothing in this Act shall be deemed to enable the said arbitrator to direct that any work shall be made of less dimensions than by this section is prescribed in that behalf :

(17) Nothing in this section contained shall prejudice or affect the provisions of an agreement dated the sixteenth day of November one thousand nine hundred and nine and made between the navigation company of the one part and the Company of the other part or the provisions of an indenture of the thirty-first day of May one thousand nine hundred and ten between the same parties.

For
further
protection
of Great
Central
Railway
Company.

29. The following provisions for the protection of the Great Central Railway Company (herein-after in this section called "the Great Central Company") shall unless with the consent of the Great Central Company in writing under their common seal apply and have effect :—

(1) The expression "Great Central property" where used in this section shall include any land railway siding building work or convenience belonging to the Great Central Company :

(2)—(A) With regard to any Great Central property which forms part of Railway No. 1 authorised by the Great Central Railway Act 1903 the Company shall not pur-

chase or take the same but the Company may acquire and the Great Central Company may and shall on being so required by the Company grant in accordance with the provisions of section 13 (13) of the Great Central Railway Act 1903 and according to their estate and interest in and subject to all easements rights and covenants affecting the same an easement or right of constructing and maintaining the widening from Doncaster to Shaftholme Junction so far as the said widening is according to this Act to be constructed on the said Great Central property ;

(B) With regard to any other Great Central property the Company shall not purchase or take the same but the Company may purchase and take and the Great Central Company may and shall sell and grant according to their estate and interest in and subject to all easements rights and covenants affecting the same an easement or right of constructing and maintaining the widening from Doncaster to Shaftholme Junction so far as the said widening is according to this Act to be constructed on such other Great Central property Provided that the Company shall not acquire nor shall the Great Central Company be compelled to sell any easement or other right over or in respect of the Marshgate Goods Yard of the Great Central Company except as to so much of the said goods yard as is shown and coloured blue upon the plan marked " H " which has been signed by his Grace the Duke of Bedford K.G. the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords);

(c) The consideration to be paid for any easement or right to be acquired by the Company under sub-section 2 (B) hereof shall in case of dispute be determined in manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement and shall include full compensation in respect of all damage loss or inconvenience which the Great Central Company may suffer or sustain by or by reason of

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the exercise by the Company of the powers of this Act or any Act incorporated therewith:

- (3) In constructing the said widening over the approach road (giving access to the Marshgate Goods Yard of the Great Central Company) numbered on the deposited plans 6 in the borough and township of Doncaster the Company shall leave a headway between the underside of the bridge and the surface of the said road not less than the maximum headway under the existing bridge and the square width between the abutments of the new bridge shall not be less than the square width between the abutments of the existing bridge. The Company shall also pay on demand to the Great Central Company all expenses incurred from time to time by the Great Central Company in constructing maintaining and using any jets or lights which in the opinion of the engineer of the Great Central Company may (by reason of the widening over the said approach road) be considered advisable for the safety of traffic using the said road:
- (4) The works of the said widening where they adjoin or interfere with the junctions between the railway of the Company and the Doncaster and Thorne Railway of the Great Central Company shall be carried out in such a manner as on the completion of the works shall leave the Great Central Company in as good a position for interchanging traffic as they are at present and according to plans previously submitted to and reasonably approved by the engineer of the Great Central Company or in case of difference between the Company and the Great Central Company to be approved by an arbitrator to be appointed as herein-after provided. If the Great Central Company give to the Company notice that they themselves desire to construct so much of the works of the said widening or to carry out so much of the alterations as will affect the running lines of the Great Central Company the Great Central Company may themselves execute the said works and recover the reasonable cost thereof from the Company:
- (5) Subject to the provisions of section 13 of the Great Central Railway Act 1903—
 - (A) The Company shall take all possible precautions in the execution of their works to prevent as

far as reasonably practicable any interference with the free and uninterrupted and safe use in the ordinary manner of any railway siding or other work belonging to the Great Central Company ;

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(B) The Company shall bear and on demand pay to the Great Central Company the expense of the employment by the Great Central Company during the execution of any work affecting any railway siding bridge or other work of the Great Central Company of a sufficient number of inspectors watchmen and signalmen to be appointed by the Great Central Company for watching and signalling the same with reference to and during the execution of any such work of the Company and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employ of the Company or their contractors with reference thereto or otherwise and if by reason of the construction of the said widening and the works connected therewith it shall become necessary to add to or alter any signal or any electrical telegraphic or telephonic appliance upon the said railway of the Great Central Company the same shall be so added to or altered by the Great Central Company and the reasonable expense thereof shall be repaid by the Company to the Great Central Company ;

(c) The Company shall also bear and on demand pay to the Great Central Company any additional expense in working or maintaining the junctions with the railway of the Company and the signals and conveniences incident to the junctions which the Great Central Company shall incur or be put to by reason or in consequence of the construction maintenance or user of the said widening or the works connected therewith ;

(D) If by reason of the execution of any of the works or the failure of any such works or any act or omission of the Company or of their contractors or of any person in the employ of the Company or their contractors or otherwise any railway siding bridge or other work of the Great Central Company shall be

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injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do then the Great Central Company may make good the same and recover the expense thereof against the Company ;

(E) The Company shall at all times take all reasonable precautions in carrying out the said widening so as not injuriously to affect any of the Great Central Company's pipes or structures or to interfere with the working of any wire line or apparatus used by the Great Central Company for the purpose of telegraphic telephonic or electric signalling communication :

(6) If any difference shall arise between the Company and the Great Central Company as to anything to be done or not to be done under this section the same shall be determined by an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to the arbitration :

(7) Nothing contained in this section shall be construed as in any way prejudicing diminishing or derogating from any rights powers or privileges to which the Company or the Great Central Company are or would but for the enactment of the provisions of this section have been entitled under or by virtue of section 13 of the Great Central Railway Act 1903.

For
protection
of Hull and
Barnsley
and Great
Central Rail-
ways Joint
Committee.

30. For the protection of the Hull and Barnsley and Great Central Railways Joint Committee (in this section called "the committee") the following provisions shall unless otherwise agreed between the Company and the committee have effect (that is to say) :—

(1) The expression "property of the committee" where used in this section shall include any land belonging to the committee or any railway siding or work belonging to the committee and any land which the committee have power to purchase or take for the purposes of their railways authorised by the Hull and Barnsley Railway Act 1909 (in this section referred to as "the Act of 1909") in respect of which the committee have served notice to treat :

- (2) The junction of Railway No. 5 by this Act authorised with the Railway No. 1 of the committee authorised by the Act of 1909 shall be made in such position within the limits of deviation shown upon the deposited plans as shall failing agreement between the committee and the Company be determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice to the other. The provisions relating to junctions contained in Part I of the Railways Clauses Act 1863 shall apply and have effect in relation to the construction maintenance and user by the Company of the said junction: A.D. 1911.
- (3) Notwithstanding anything contained in this Act or shown upon the deposited plans the Company shall not purchase or take compulsorily any property of the committee for the purposes of the widening from Doncaster to Shaftholme Junction by this Act authorised. Provided always that nothing herein contained shall preclude the Company from constructing the said widening under the bridge referred to in the next succeeding sub-section hereof:
- (4) Subject as herein-after provided but notwithstanding any other provision of this Act or anything shown on the deposited plans or sections the Company shall not construct the widening authorised by this Act of their main line from Doncaster to Shaftholme Junction where the same crosses under the Railway No. 1 of the committee authorised by the Act of 1909 (a) in such position or manner as to interfere with the construction of the said Railway No. 1 as required by the Act of 1909 to be constructed and maintained or as to render it necessary for the committee to construct the bridge (as so required to be constructed and maintained) whereby the said Railway No. 1 will be carried over the said main line of the Company (including the said widening thereof) of greater dimensions than was provided by section 25 of the Act of 1909 or to alter such bridge if so constructed or (b) so as to interfere with such bridge if so constructed:

Provided that nothing contained in this section shall be construed as in any way prejudicing or

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derogating from any rights powers or privileges to which the Company are or would but for the enactment of the provisions of this section have been entitled under or by virtue of the Act of 1909 :

- (5) The power of the committee to purchase and take and the obligation of the Company to sell and grant to the committee such an easement or right as shall be necessary for the purpose of constructing using and maintaining the said Railway No. 1 authorised by the Act of 1909 on or across the property of the Company shall be deemed to extend to such easement or right as shall be necessary for the purpose of constructing using and maintaining the said Railway No. 1 across the said widening by this Act authorised from Doncaster to Shaftholme Junction of the main line of the Company :
- (6) Subject and without prejudice to the rights of the Company under or by virtue of the Act of 1909 the Company and their contractors agents servants or workmen shall not during the construction or in the subsequent maintenance or user of the works by this Act authorised interfere with the free uninterrupted and safe construction maintenance and use of the railways and works of the committee or the traffic thereon respectively :
- (7) The Company shall bear and on demand pay to the committee the reasonable expense of the employment by the committee during the execution or repair of any work to be executed under the powers of this Act affecting any property of the committee of a sufficient number of inspectors watchmen and signalmen to be appointed by the committee for watching and signalling the same with reference to and during the execution or repair of any such work of the Company and for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employ of the Company or of their contractors with reference thereto or otherwise :
- (8) If by reason of the construction or maintenance of any works authorised by this Act or any failure thereof or any act or omission of the Company or their contractors

or any servants or workmen employed by them respectively the property of the committee be injured or the traffic on the railways of the committee be interfered with the Company shall pay to the committee all costs charges damages and expenses which the committee may thereby reasonably be put to or incur :

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- (9) Any dispute arising under the provisions of this section between the Company and the committee shall except as herein-before otherwise provided be referred to an arbitrator to be agreed upon between the parties or failing such agreement to be appointed on the application of either party by the Board of Trade.

31. The following provisions for the protection of the Great Eastern Railway Company and the Midland Railway Company shall be in force and have effect in respect of the railways works and property owned solely or jointly by them or either of them :—

For protection of Great Eastern and Midland Railway Companies.

- (1) In this section the expression "the railway company" includes each of the said companies respectively or either of them as the case may require and the expression "the principal engineer" means the principal engineer of the railway company :
- (2) Notwithstanding anything shown upon the deposited plans and sections the Company shall not without in every case the previous consent of the railway company in writing under their common seal purchase take use enter upon or in any way interfere with either temporarily or permanently any land railway railway siding or other work belonging or leased to the railway company except only so far as may be necessary for the purpose of making and maintaining the Widening No. 1 at Peterborough to be constructed under the powers of this Act where the same will be over or upon the March to Peterborough Branch Railway of the Great Eastern Railway Company and the Syston and Peterborough line of the Midland Railway Company :
- (3) With respect to any land railway railway siding or other work belonging or leased to the railway company which the Company are by this Act authorised to take use enter upon or interfere with for the purpose of the said Widening No. 1 the Company shall not purchase or take

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the same but the Company may purchase and take and the railway company may and shall sell and grant so far as their interests in such land railway railway siding or work may extend an easement or right of using the same for the purposes for which but for this enactment the Company might purchase and take the same The amount to be paid by the Company to the railway company for any such easement or right shall be settled in case of dispute in manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement :

- (4) Notwithstanding anything contained in this Act or shown upon the deposited plans the bridge to carry the said Widening No. 1 over the said railways of the Great Eastern and Midland Railway Companies shall be constructed in accordance in all respects with the plan marked " L " which has been signed by his Grace the Duke of Bedford K.G. the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) and so that the said bridge shall have one continuous span between the northern abutment on the line A B and the southern abutment on the line C D shown on the said signed plan :
- (5) Subject as aforesaid the crossing of the said Widening No. 1 over or upon the said railways of the Great Eastern and Midland Railway Companies shall be effected in such manner and according to such mode of construction as shall be approved of by the principal engineer of the respective company affected by the proposed works and in accordance with plans sections and specifications to be previously submitted to him Provided always that if the principal engineer shall for the period of one month neglect or refuse to approve any such plans sections or specifications submitted for his approval he shall be deemed to have approved the same but that if the principal engineer shall within the said period of one month disapprove the said plans sections and specifications and the principal engineer and the engineer of the Company shall fail to come to an agreement then the

said works shall be constructed according to plans sections and specifications to be submitted to and approved (subject however to the special provisions of this section) by an engineer to be agreed upon or in default of agreement to be appointed at the request of any of the said companies by the President of the Institution of Civil Engineers : A.D. 1911.

- (6) The Company shall at any time when called upon to do so by the railway company afford to the railway company all reasonable facilities of every kind for widening their railway at the point of crossing and for extending the bridges and other works to be constructed under this Act :
- (7) The Company shall not in any manner in the execution of the works by this Act authorised obstruct or interfere with the free and uninterrupted and safe user of the railway and works of the railway company or any traffic thereon and shall during the execution or repair of any of their works execute all such temporary works as the railway company may reasonably require for the purpose of avoiding risk to the railway railway sidings or works of the railway company or interruption of the traffic thereon :
- (8) The Company shall bear and on demand pay to the railway company the expense of the employment by the railway company with reference to and during the execution of the works by this Act authorised affecting any railway railway siding or other work of the railway company of a sufficient number of inspectors watchmen and signalmen to be appointed by the railway company for watching and signalling the same and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employ of the Company or of their contractors with reference thereto or otherwise and if by reason of the construction of the said works it shall become necessary to add to or alter any signals or telegraphic or telephonic appliances upon the said railways of the railway company the same shall be so added to or altered by the railway company and the

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reasonable expense thereof including any additional cost of maintenance to which the railway company may be put by reason or in consequence thereof to be certified by the principal engineer shall be repaid to the railway company by the Company :

- (9) If by reason of the execution of any of the works by this Act authorised or any proceedings of the Company in connection therewith or the failure of any such works or any act or omission of the Company or of their contractors or of any person in the employ of the Company or of their contractors or otherwise in the execution of the said works any railway railway siding or other work of the railway company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do then the railway company may make good the same and recover the expense thereof from the Company and if any interruption shall be occasioned to the traffic of or upon any such railway railway siding or other work of the railway company by reason of any of the matters or causes aforesaid the Company shall pay to the railway company all costs and expenses to which the railway company may be put as well as full compensation :
- (10) The Company shall at all times maintain the said bridge and other works by this Act authorised by which the said Widening No. 1 will be carried over or upon the railway railway sidings or other works of the railway company in substantial repair and good order and condition and of the span herein-before in this section mentioned and the headway shown on the said signed plan to the reasonable satisfaction in all respects of the principal engineer and if and whenever the Company fail so to do the railway company may make and do in and upon as well the lands of the Company as their own lands all such works and things as the railway company reasonably think requisite in that behalf and the sum from time to time certified by the principal engineer to be the reasonable amount of such their expenditure shall be repaid to them by the Company :
- (11) The Company shall repay to the railway company or the managing committee of the Great Eastern Railway

Accident Fund as the case may require all sums of money costs charges and expenses which the railway company or the said managing committee may pay to any servants or workmen of the railway company in respect of personal injury by accident happening to such servants or workmen while engaged upon any work which the railway company are by this section empowered to execute :

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(2) The Company and the railway company may agree upon any variation or alteration in the works in this section provided for or in the manner in which the same shall be executed :

(13) If any difference arise between the Company and the railway company under sub-sections (4) to (10) both inclusive of this section such difference shall be referred to and determined by an engineer to be mutually nominated by the respective engineers of the Company and the railway company or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party.

32.—(1) For the protection of the Right Honourable George Edmund Milnes Viscount Galway and his sequels in estate (all of whom are in this section included in the expression “ Lord Galway ”) and of Arnold Lupton his executors administrators or assigns or other the person or company for the time being entitled to the benefit of certain agreements for leasing coal under the lands of Lord Galway in the parishes of Harworth and Scrooby in the county of Nottingham dated respectively the twenty-fifth day of June one thousand nine hundred and nine and the tenth day of August one thousand nine hundred and ten and made between Lord Galway and the said Arnold Lupton (all of whom are in this section included in the expression “ the lessee ”) the following provisions shall unless otherwise agreed between Lord Galway and the lessee on the one hand and the Company on the other hand have effect (that is to say) :—

For
protection
of Lord
Galway and
Arnold
Lupton.

(A) If and so soon as the lessee (i) shall have given notice in writing to the Company that he has obtained and the Company are reasonably satisfied that he has obtained the capital necessary for the establishment of a colliery company to work and for working the minerals lying under the before-mentioned lands parts

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of which are described in the deposited books of reference as intended to be taken or used by the Company for the purposes of the Railway (No. 4) authorised by this Act and (ii) shall have conveyed to the Company free of cost his surface rights and all his estate and interest to a depth of one hundred feet below the present surface in the lands coloured red on the plan marked "M" which has been signed by his Grace the Duke of Bedford K.G. the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) which plan is herein-after in this section referred to as "the signed plan" the Company shall thereupon give Lord Galway notice that they desire to purchase the lands and hereditaments coloured red on the signed plan. Within three months thereafter the Company shall take possession of the said lands and hereditaments and shall proceed to construct the said Railway No. 4 and shall complete and open the same for traffic with all reasonable despatch and shall also forthwith proceed to construct a temporary or contractor's railway for the carriage of materials from the Company's existing railway to the said proposed colliery and complete the same with all reasonable dispatch. The terms and conditions upon which the said temporary or contractor's railway shall be used for the carriage of the said materials shall be agreed between the Company and the lessee or failing agreement settled by arbitration as herein-after provided. On the completion of the said Railway No. 4 the Company may remove the said temporary or contractor's railway :

- (B) Contemporaneously with the construction by the Company of the said Railway No. 4 the lessee shall construct a railway to connect the said Railway No. 4 with the proposed colliery and any other works which may be constructed by the lessee together with all necessary sidings for full and empty wagons. The said connecting railway and sidings shall be constructed according to such plans sections and specifications as shall have been previously submitted to and approved by the

engineer of the Company or in case of difference between him and the lessee by an arbitrator to be appointed as herein-after provided and shall subsequently be maintained by the lessee : A.D. 1911.

- (c) Notwithstanding anything shown on the deposited plans the Company shall not without the consents of Lord Galway and the lessee acquire under the powers of this Act more land situate to the westward of the Company's main line and within the said parishes of Harworth and Scrooby than is coloured red on the signed plan.

(2) For the further protection of the lessee the following provisions shall unless otherwise agreed between the lessee and the Company have effect (that is to say) :—

- (A) In order to secure the efficient working of the proposed colliery and to provide means of communication between the proposed colliery and any other works or sidings it shall be lawful for the lessee from time to time at his own expense to make such railways tramways roads footpaths or watercourses upon the land of the Company coloured red on the signed plan at any point or points between the letters A and B on the signed plan by means of level crossings bridges archways or tunnels as may be reasonably necessary but upon the following conditions namely :

- (B) Before the lessee commences any such work he shall give the Company notice of his intention to construct the same and the Company may if they think fit construct such work or any specified part thereof at the expense of the lessee :

- (c) Subject as aforesaid—

(i) All such works shall be constructed and maintained under the superintendence and to the reasonable satisfaction of the Company and shall be of such dimensions quality and strength of materials and design and method of construction and according to such plans sections and specifications as shall have been previously submitted to and approved by the Company or in case of difference between them and the lessee by an arbitrator to be appointed as herein-after provided ;

(ii) The lessee shall not in the execution maintenance or repair of any of his works remove or disturb

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(except so far as may be absolutely necessary for the purpose of constructing any railway tramway road or footpath crossing the Company's railway on the level) any of the rails of the said Railway No. 4 or obstruct hinder or interfere with the free uninterrupted and safe user of such railway or any traffic thereon ;

(iii) The lessee shall bear and on demand pay to the Company the reasonable expense of the employment by the Company during the execution or repair of any such work of the lessee of such inspectors watchmen and signalmen to be appointed by the Company as may be necessary for watching and signalling their railway and works with reference to and during the execution or repair of any such work of the lessee ;

(iv) If by reason of the construction or user of any such work of the lessee it shall become necessary to add to or alter any signal cabins signal posts or other similar works on the railway of the Company the Company may make such additions and alterations and the reasonable expense of such additions and alterations shall be repaid by the lessee to the Company on demand ;

(v) The cost of maintaining any additional signal cabins signal posts signals or other similar works and a fair proportion of the cost of maintaining any altered signal cabins signal posts signals or other similar works shall at the end of every half-year be repaid by the lessee to the Company ;

(vi) If by reason of the execution or failure of any of the works of the lessee or any act or omission of the lessee or his contractors or any person in the employment of the lessee or his contractors any railway siding or work belonging to the Company shall be injured or damaged such injury or damage shall be forthwith made good by the lessee at his own expense or in the event of his failing so to do then the Company may make good the same and the reasonable expense thereof as certified by the engineer of the Company shall be repaid to the Company by the lessee on demand and the lessee shall indemnify the Company against all losses which the Company may sustain and shall pay all costs charges or expenses which the Company may be put to or incur

by reason of the execution or failure of any of the works of the lessee or any act or omission of the lessee or his contractors or any person in the employment of the lessee or his contractors ;

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(vii) If at any time hereafter the Company shall be desirous of extending widening or altering the said Railway No. 4 affected by the works of the lessee the lessee shall give the Company all proper and reasonable facilities for that purpose at the reasonable cost of the Company :

(D) The user of and the working of traffic over any such railway tramway road or footpath crossing the said Railway No. 4 on the level shall be in all respects subject to the absolute control and direction of the Company and the lessee and his servants and workmen shall at all times observe the regulations and bye-laws of the Company for the time being in force and shall comply with all orders and directions of the Company their officers and servants Provided that the Company their officers and servants shall not unnecessarily impede the working of the lessee's traffic over any such level crossing.

(3) Any difference which may from time to time arise between Lord Galway and the lessee or either of them on the one hand and the Company on the other in respect to the proper construction of the provisions of this section other than sub-section 2 (D) or any act done or to be done or not to be done in pursuance thereof or anything relating thereto shall be referred to an engineer to be appointed as arbitrator by the Board of Trade upon the application of either party and the Arbitration Act 1889 shall apply and any question arising under the proviso to sub-section 2 (D) of this section shall be referred to and determined by the Board of Trade.

33. So far as any portion of any railway of the Company over which the London and North Western Railway Company possess running powers is widened under the powers of this Act such running powers shall extend and apply to the widening of such portion of railway.

Running powers to London and North Western Railway Company over widenings.

PART III.—STREET WORKS AT PETERBOROUGH.

34. Subject to the provisions of this Act the Company may in connection with the construction of the Widening No. 2 of their main line at Peterborough by this Act authorised make in the

Street works at Peterborough.

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The said works which are situate in the parish of Peterborough Within in the city and borough of Peterborough in the soke of Peterborough in the county of Northampton comprise—

- (1) A diversion and alteration of Thorpe Road and Cowgate such diversion and alteration commencing by a junction with Thorpe Road aforesaid at a point about one hundred yards west of the western end of "The Crescent" and terminating by a junction with Cowgate aforesaid at a point about one hundred yards east of the junction therewith of Sweetbrier Walk :
- (2) A new road (No. 1) commencing by a junction with St. Leonard Street at a point about thirty yards north of the junction of that street with Nelson Street and terminating by a junction with the said diversion of Thorpe Road and Cowgate at a point about one hundred yards measured in a north-westerly direction from the termination thereof and about sixty-five yards measured in a northerly direction from the northern end of Sweetbrier Walk :
- (3) An alteration of the levels of Nelson Street between points respectively about twenty yards and about fifty yards measured in an easterly direction from the junction of the said street with St. Leonard Street :

And the Company may and shall maintain the structure of the bridge for carrying the said diversion and alteration of Thorpe Road and Cowgate over the railways of the Company and the Midland Company respectively :

- (4)—(A) The Company may notwithstanding anything contained in the section of this Act the marginal note whereof is "Restrictions on stopping up roads" stop up—

- (i) so much of St. Leonard Street as extends southward of the commencement of the said new road (No. 1) ;

- (ii) so much of Nelson Street as extends from its junction with St. Leonard Street to a point about twenty yards eastward of the said junction ;

But they shall not stop up the said portions of the said streets under the powers of this Act unless they are the owners in possession of all houses and lands on both sides of the portions of the said streets to be so stopped up except so far as the owners lessees and occupiers of those houses and lands may otherwise agree ;

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- (b) The Company may abolish the level crossing of their railway by Thorpe Road and Cowgate or one of them ; and
- (c) The Midland Company may abolish the level crossing of their railway by Thorpe Road and Cowgate or one of them ;
- (d) Upon the stopping up of the said portions of roads or streets and the abolition of the said level crossings respectively all rights of way over the portion of road or street or level crossing so stopped up or abolished shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site and soil of such portion of road or street and the Company and the Midland Company may respectively subject to the said provisions of the Railways Clauses Consolidation Act 1845 appropriate and use for the purposes of their respective undertakings the site and soil of the said level crossings so far as such site and soil are situate between the respective boundaries of the properties of the said companies.

35. The Company and the Midland Company may enter into and carry into effect agreements and arrangements with respect to all or any of the matters referred to in this Part of this Act.

Agreements between Company and Midland Company.
For mutual advantage of Company and Corporation of Peterborough.

36. The following provisions for the mutual advantage of the mayor aldermen and citizens of the city of Peterborough (in this section called "the corporation") and the Company shall unless otherwise agreed between the corporation and the Company apply and have effect in the exercise of the powers of this Part of this Act (that is to say) :—

Notwithstanding anything contained in this Act or shown upon the deposited plans—

- (1) The works authorised by this Part of this Act shall be constructed in all respects in accordance with the plan

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marked " A " which has been signed in duplicate by the Honourable Walter Edward Guinness the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords and which plan is in this section called " the signed plan ") :

- (2) The Company shall in accordance with the signed plan construct the temporary road shown thereon connecting St. Leonard Street with the Company's existing Station Approach Road for the use of passengers to and from the Company's Station but as soon as the Company provide another suitable approach to the said station they may close such temporary road and thereupon all rights of way over the same shall be extinguished :
- (3) The Company shall not construct the new road No. 2 shown on the deposited plans but in lieu thereof they shall divert River Lane in accordance with the signed plan and when such diversion shall be completed all rights of way over the portion of River Lane to the east of the red line drawn on the signed plan shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site and soil of the aforesaid portion of River Lane :
- (4) As soon as the diversion of Thorpe Road and Cowgate is completed and open to the public the Company may close the subway passing under the railways of the Company and the Midland Company between the points marked A and B on the signed plan and all rights of way through the said subway shall be extinguished :
- (5) The diverted road and the new roads by this Part of this Act authorised (except the said temporary road) shall be levelled paved metalled flagged and channelled by the Company to the reasonable satisfaction of the corporation and all streets or roads broken up or interfered with by the Company shall with all reasonable dispatch be restored to the like satisfaction and

such diverted and new roads shall be kept in repair by the Company to the like satisfaction for a period of one year from the completion thereof: A.D. 1911.

- (6) Wherever it may be necessary for the Company to intercept or sever any sewer or drain of the corporation the Company shall before intercepting or severing such sewer or drain construct according to a plan to be reasonably approved of by the corporation another sewer or drain in lieu of and of equal capacity with the sewer or drain so proposed to be intercepted or severed and such substituted sewer or drain shall be connected by the corporation at the expense of the Company with the existing sewer or drain so intercepted or severed and in such manner as shall be reasonably approved by the corporation:
- (7) If by reason of the execution of any of the works authorised by this Part of this Act the corporation shall necessarily incur cost in altering any sewer drain water main electric main or apparatus the Company shall repay to the corporation such cost:
- (8) The Company and the corporation may agree upon any variation of or alteration in the works in this section provided for or the manner in which the same shall be executed:
- (9) In case of any difference arising between the corporation and the Company with respect to any of the matters in this section contained such difference shall be settled and determined by an engineer to be appointed by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to such reference.

37. The following provisions for the protection of the estate of George Charles Wentworth Fitzwilliam of Milton House Peterborough esquire shall apply and have effect:—

For protection of estate of George Charles Wentworth Fitzwilliam.

- (1) The Company shall within three months from the completion of the street works at Peterborough by this Part of this Act authorised pay to the said George Charles Wentworth Fitzwilliam the sum of five hundred pounds in respect of the injurious affection by the Company of the following properties namely The properties numbered on the deposited plans 5 to 7 inclusive 62 63 67 68 72 to 76 inclusive and 99 to

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102 inclusive in the parish of Peterborough Within and of all other property in the soke of Peterborough of which the said George Charles Wentworth Fitzwilliam is the owner :

- (2) The Company shall construct and throw open for the use of the public the steps shown on the plan marked "I" which has been signed by his Grace the Duke of Bedford K.G. the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) :
- (3) The payment of the said sum of five hundred pounds and the construction of the said steps by the Company shall be in full satisfaction of and compensation for all damage whether permanent temporary or recurring occasioned to the said properties by the construction or execution of the works by this Act authorised or the injurious affection of such properties by the exercise of the powers of this Act or the Acts incorporated with this Act and shall be in full satisfaction of and compensation for all works or things which might otherwise be required to be made or done under the said Acts for the better enjoyment protection or accommodation of the said properties.

PART IV.—POWERS TO THE COMPANY WITH REFERENCE
TO LANDS.

Power to
Company
to purchase
lands
delineated on
deposited
plans.

38. Subject to the provisions of this Act the Company may enter upon take use and purchase compulsorily or by agreement for the construction of the new railways the Great Northern widenings and the other works by this Act authorised to be constructed by the Company (including in such works for the purposes of this section the new footpaths and diversions of footpaths by this Act authorised to be constructed by the Company) and for the general purposes of their undertaking all or any of the lands delineated on the deposited plans and described in the deposited books of reference as intended to be taken or used for the purposes of the said railways widenings and works respectively and may hold and use for all or any of the said purposes such of the said lands as have already been purchased by or on behalf of the Company and the same shall be deemed to be lands acquired compulsorily under the powers of this Act.

39. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and purchase compulsorily or by agreement for the purposes of their undertaking the lands herein-after described which are delineated upon the deposited plans and described in the deposited books of reference and may hold and use for all or any of the purposes of their undertaking such of the lands herein-after described as have already been purchased by or on behalf of the Company and the same shall be deemed to be lands acquired compulsorily under the powers of this Act (that is to say):—

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Power to
Company to
purchase
additional
lands.

IN THE COUNTY OF LONDON:—

Land at King's Cross in the parish and metropolitan borough of St. Pancras bounded on the south partly by Battle Bridge Road and partly by the railway and station of the Company on the east partly by the railway of the Company and partly by York Road on the north-west by the Regents Canal and on the west partly by Wharf Road together with the bridge carrying Congreve Street over the railway of the Company.

IN THE COUNTY OF MIDDLESEX:—

(1) Lands at Finchley in the parish of Finchley—

(A) A strip of land adjoining the High Barnet Branch Railway of the Company on the north-eastern side thereof;

(B) A plot of land bounded on the south-east by Green Lane and on the north-east and partly on the north-west by property of the Company:

(2) Lands in the parish of Enfield—

(A) A triangular piece of land at King's Oak Plain Enfield bounded on the north-east by property of the Company and situate opposite the Rendlesham Viaduct of the Company at about ten and a half miles from London;

(B) Lands at King's Oak Plain aforesaid bounded on the south-west by property of the Company and on the north-east by the road leading from Enfield to Clay Hill Lodge;

(C) A triangular piece of land at Grange Park Enfield adjoining the Enfield Goods Branch Railway of the Company on the western side thereof;

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(D) A plot of land at Enfield bounded on the north by the public road known as Windmill Hill and on the west by property of the Company;

(E) A small triangular piece of land at Gordon Hill bounded on the south by the public road known as Holtwhite's Hill and on the north-east by property of the Company;

(F) Lands at Gordon Hill bounded on the south by Holtwhite's Hill aforesaid on the south-west by property of the Company and on the north by the southern boundary fences of houses and premises in the public road known as Gordon Hill;

(G) A triangular piece of land at Gordon Hill bounded on the south-east by the public road known as Lavender Hill and on the north-east by property of the Company;

(H) A triangular piece of land at Gordon Hill bounded on the south-west by property of the Company and on the south-east by the Enfield Cemetery:

(3) Lands at Stroud Green in the parish of Hornsey—

(A) A triangular piece of land bounded on the south by property of the Company and on the north-west by Ossian Road;

(B) A triangular piece of land abutting upon the western side of the road known as Mount Pleasant Villas being the house and premises known as 33 Mount Pleasant Villas:

(4) Lands at Hadley Wood in the parish of South Mimms—

(A) Lands bounded on the south by Wagon Road and on the north and east by property of the Company;

(B) Lands bounded on the south by Wagon Road aforesaid and on the north and west by the property of the Company:

(5) Lands in the parish and urban district of Wood Green—

(A) Lands at Bowes Park bounded on the south-west by Carlton Road and on the south-east by the footpath leading from Bowes Park Station to Pymme's Road;

(B) Lands at Wood Green adjoining the main line of railway of the Company and bounded on the west and

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south by property of the Company on the east by Western Road and on the north partly by property of the Company and partly by premises belonging to the Wood Green Urban District Council. A.D. 1911.

IN THE COUNTIES OF LONDON AND MIDDLESEX:—

A small triangular piece of land at Stroud Green partly in the parish of Hornsey in the county of Middlesex and partly in the parish and metropolitan borough of Islington in the county of London bounded on the north by Blythwood Road and on the south-west by property of the Company.

IN THE COUNTY OF HERTFORD:—

(1) Lands in the parish of Hatfield—

(A) Lands at Hatfield adjoining the Hatfield Station of the Company on the western side thereof bounded on the east and south by property of the Company and on the north by the footpath leading from the North Road to French Horn Lane;

(B) A strip of land near Attimore Hall adjoining the Hertford Branch Railway of the Company on the south-western side thereof:

(2) Lands at Langley Siding in the parish of Stevenage —

(A) Lands forming part of the field numbered 666 in the said parish on the $\frac{1}{2500}$ scale Ordnance map (2nd Edition 1898) Hertfordshire Sheet XX. 3 bounded on the south-east by the roadway forming the south-eastern boundary of that field on the east by property of the Company and on the north by the northern boundary of the said field;

(B) Lands bounded on the east by property of the Company and extending northward from a point about two chains northward of the public road leading from Stevenage to Norton Green:

(3) Lands at Letchworth in the parish of Letchworth adjoining the Cambridge Branch Railway of the Company—

(A) A strip of land adjoining the south-eastern side of the said branch railway;

A.D. 1911.

(B) Lands on the south-eastern side of the said branch railway lying between the said railway and the roads respectively known as Station Way Station Place and Station Road such lands including part of the road passing under the said branch railway between Bird's Hill and Nevell's Road;

(C) A strip of land adjoining the north-western side of the said branch railway and extending from a point about six chains south-westward of Letchworth Station to a point about one chain south-westward of the culvert carrying Pix Brook under the said branch railway;

(D) A strip of land adjoining the north-western side of the said branch railway bounded on the south-east north-east and north-west by lands belonging to the Company and on the west by the roadway known or intended to be known as Norton Way North:

(4) Lands in the parish of St. Peter Rural—

(A) A strip of land at Fleetville bounded on the north by premises of the Company adjoining their St. Albans Branch Railway and on the south by the Beaumont Works of Nicholson's Raincoat Company Limited;

(B) A strip of land at Nast Hyde adjoining the St. Albans Branch Railway of the Company on the north-western side thereof at Nast Hyde Halt:

(5) Lands at Knebworth in the parish of Knebworth—

(A) A strip of land adjoining the main line of the Company on the western side thereof and extending from a point opposite or nearly opposite the mile post denoting twenty-five and three-quarter miles from London to a point two and a quarter chains or thereabouts northward of the mile post denoting twenty-six miles from London;

(B) A triangular-shaped piece of land bounded on the east by property of the Company and on the north-west by the roadway from Knebworth to Stevenage;

(C) A triangular piece of land adjoining the said main line on the eastern side thereof opposite or nearly opposite the said mile post denoting twenty-six miles from London and bounded on the west and north-east by property of the Company:

(6) Lands at New Barnet—

A.D. 1911.

(A) A strip of land in the parish of East Barnet adjoining the main line of railway of the Company on the eastern side thereof;

(B) A strip of land in the parish of Monken Hadley adjoining the main line of railway of the Company on the eastern side thereof:

(7) Lands near Cuffley in the parish of Cheshunt bounded on the east by property of the Company and on the south west and north by the Cuffley Brook:

(8) Lands at Harpenden in the parish of Harpenden Urban adjoining the Luton and Dunstable Branch Railway of the Company on the south-western side at Harpenden Station bounded on the south-east by Station Road and on the south by a new road leading out of Station Road.

IN THE COUNTY OF BEDFORD:—

(1) Lands at Luton in the parish of Luton—

(A) Two triangular pieces of land adjoining the goods yard of the Company on the southern side thereof at points nearly opposite the junction of Williamson Street and Guildford Street;

(B) Lands and premises on the north-western side of Williamson Street extending along that street in a south-westerly direction from the point at which the River Lea crosses under the said street;

(C) Lands adjoining the Luton and Dunstable Branch Railway of the Company on the northern side thereof bounded on the south by property of the Company and on the east by the Dunstable Road;

(D) Lands adjoining the said branch railway on the northern side thereof extending from a point opposite the mile post denoting thirty-three and a half miles from London to a point about one and a half chains west of a point opposite the mile post denoting thirty-three and three-quarter miles from London and bounded on the south by the property of the Company:

A.D. 1911.

- (2) A triangular piece of land at Biggleswade in the parish of Biggleswade adjoining the main line of railway of the Company on the western side thereof and lying between Crab Lane and Rose Lane bounded on the south east and north by property of the Company and on the west partly by Rose Lane and partly by other property of the Company.

IN THE SOKE OF PETERBOROUGH IN THE COUNTY OF NORTHAMPTON:—

(1) Lands in the parish of Peterborough Within—

(A) A strip of land at New England adjoining the main line of the Company on the north-eastern side thereof bounded on the south-east by the premises of Messrs. Gilstrap Earp and Company and on the north-west by the road which crosses the said main line at the north-western boundary of the said parish;

(B) Lands at Peterborough being the houses and premises known as Numbers 1 2 and 3 Neville Terrace Sweetbrier Walk Numbers 1 2 3 4 5 6 7 and 8 Neville Place and Numbers 1 2 3 4 5 6 7 8 and Sphinx House New Priestgate;

(C) Lands at Peterborough bounded on the north by Thorpe Road and on the east by River Lane being the house and premises known as West End House:

- (2) A strip of land at New England in the hamlet of Walton adjoining the said main line on its north-eastern side bounded on the south-east by the road which crosses the said railway, on the level at the south-eastern boundary of the said hamlet and extending in a north-westerly direction from the said road.

IN THE PARTS OF KESTIVEN IN LINCOLNSHIRE:—

- (1) Lands at Little Bytham in the township of Careby adjoining the main line of the Company on the eastern side thereof bounded on the east by the public road leading from Careby to Little Bytham and on the north by the approach road to Little Bytham Station:

- (2) Lands at Deeping in the parish of Deeping St. James bounded on the north-west by the bank of the River

Welland on the south-west and the south-east partly by the said bank and partly by property belonging or reputed to belong to Edward Foster: A.D. 1911.

- (3) Lands at Sleaford partly in the township of New Sleaford and partly in the parishes of Old Sleaford and Quarrington adjoining the goods yard of the Company at Sleaford Station on the northern side thereof bounded on the south and south-east by property of the Company.

IN THE PARTS OF HOLLAND IN LINCOLNSHIRE:—

A strip of land at Kirton in the parish of Kirton adjoining the western side of the Lincolnshire Loop Line of the Company and extending from Cut Throat Lane to King's Road.

IN THE PARTS OF LINDSEY IN LINCOLNSHIRE:—

A strip of land at Mablethorpe in the parish of Mablethorpe St. Mary and Peter adjoining the railway of the Company on its south-western side and extending in a south-easterly direction from High Street Mablethorpe.

IN THE COUNTY OF NOTTINGHAM:—

- (1) A strip of land at Colwick in the parish of Colwick adjoining the Nottingham and Grantham Railway on the south-eastern side thereof and lying to the south-west of the road crossing the said railway on the level and known as Savel's Crossing:

- (2) Lands at Balderton in the parish of Balderton:—

(A) A strip of land adjoining the main line of railway of the Company on the south-western side thereof and extending between points respectively about fourteen chains south-east and about thirteen and a half chains north-west of the mile post denoting one hundred and seventeen and three-quarter miles from London;

(B) A strip of land adjoining the said main line of railway on its south-western side and extending northwards from Coddington Road;

(C) A strip of land adjoining the south-western side of the said main line and extending in a south-easterly direction from Bullpit Lane;

A.D. 1911

(D) A strip of land adjoining the south-western side of the said main line and extending in a north-westerly direction from Bullpit Lane ;

(E) A strip of land adjoining the said main line on its north-eastern side and extending between points respectively about thirteen chains and about five chains measured in a south-easterly direction from the said last-mentioned mile post ;

(F) A strip of land adjoining the said main line on its north-eastern side and extending between points respectively about two chains south-east and about seven chains north-west of the said mile post ;

(G) A piece of land bounded on the south-west and west by property of the Company and on the north by Fen Lane ;

(H) A strip of land adjoining the said main line on its north-eastern side and extending in a south-easterly direction from Bullpit Lane ;

(I) A triangular piece of land bounded on the south-east by Bullpit Lane and on the south-west by property of the Company ;

(J) A strip of land adjoining the said main line on its north-eastern side and extending between points respectively about five and a half chains and about twenty-four chains north-west of Bullpit Lane :

(3) A plot of land at Muskham in the township of North Muskham adjoining the main line of railway of the Company on the eastern side thereof.

IN THE COUNTY OF DERBY:—

Lands at Ilkeston in the parish of Ilkeston adjoining the Derbyshire and Staffordshire Railway of the Company on the south-eastern side thereof—

(A) A strip of land extending in a south-westerly direction from the footbridge crossing over the said railway near the south-western end of the platforms at Ilkeston Station to the road known as Manor Road ;

(B) A strip of land extending along the south-eastern boundary of the said railway between points respectively

about two chains and about twelve and a half chains south-west of the road leading from Manners Road to Manners Colliery. A.D. 1911.

IN THE COUNTY OF STAFFORD :—

A triangular piece of land at Chartley in the parish of Stowe adjoining the Chartley and Stowe Station of the Company on the northern side thereof and bounded on the west by the road leading from Uttoxeter to Colwich.

IN THE WEST RIDING OF THE COUNTY OF YORK :—

- (1) Lands and premises at Bawtry in the township of Bawtry adjoining the main line of railway of the Company on the western side thereof bounded on the north and north-west by the public road leading from Bawtry to Misson and on the south by the centre of an occupation road crossing under the said railway :
- (2) A strip of land at Bawtry partly in the said township of Bawtry and partly in the township of Austerfield adjoining the main line of the Company on the south-western side thereof and extending from their Bawtry station yard northwards to the Great North Road :
- (3) A strip of land at Doncaster in the parish of Rossington adjoining the main line of railway of the Company on the north-eastern side thereof and extending in a south-easterly direction from the Mother Drain :
- (4) A strip of land at Doncaster partly in the said parish of Rossington and partly in the parish of Cantley and the township or parish of Loversall partly adjoining the said main line of railway and partly adjoining the Dearne Valley Railway on their respective north-eastern sides and extending in a north-westerly direction from the Mother Drain :
- (5) A strip of land at Doncaster in the said township of Loversall adjoining the said main line of railway on its south-western side and extending in a south-easterly direction from the Mother Drain :
- (6) A strip of land at Doncaster in the said parish of Cantley adjoining the said main line of railway on its south-western side bounded on the south-west by the property of the Dearne Valley Railway Company :

- A.D. 1911. (7) Lands at Doncaster partly in the said parish of Cantley and partly in the township of Doncaster bounded on the south-west by the property of the Company and on the south-east north-east and north-west by the railway of the South Yorkshire Joint Line Committee from Low Ellers Junction to Potteric Carr Junction :
- (8) Lands at Harrogate in the parish of Harrogate abutting upon the northern side of the street known as James Street such lands being the house and premises numbered 16 James Street :
- (9) A strip of land at Drighlington in the parish of Birkenshaw adjoining the north-eastern side of the Gildersome Branch Railway of the Company.

Owners may
be required
to sell to
Company
parts only
of certain
lands and
buildings.

40. And whereas in the construction of the new railways the Great Northern widenings and other the works by this Act authorised to be constructed by the Company or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are in this section included in the term “the owner” and the said properties are in this section referred to as “the scheduled properties”:
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

(3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :

(4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :

(5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :

(6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

A.D. 1911.

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Lands for
extra-
ordinary
purposes.

41. The quantity of land to be taken by the Company under the powers of this Act by agreement for the extraordinary purposes of their undertaking mentioned in the Railways Clauses Consolidation Act 1845 shall not exceed fifty acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken.

For protec-
tion of
Commis-
sioners of
Sewers for
County
of Lincoln.

42. The following provisions for the protection of the Commissioners of Sewers for the County of Lincoln (herein-after in this section referred to as "the commissioners") shall unless otherwise agreed in writing between the commissioners and the Company apply and have effect:—

- (1) If the Company on the lands situate in the parish of Mablethorpe Saint Mary and Peter and described in the section of this Act whereof the marginal note is "Power to Company to purchase additional lands" erect construct or lay down any buildings or works in any way affecting any sewer drain watercourse or other work vested in or subject to the jurisdiction of the commissioners such buildings or works shall be erected constructed or laid down according to plans and speci-

fications to be previously submitted to and reasonably approved by the commissioners or in case of difference between the commissioners and the Company by an arbitrator to be appointed as herein-after mentioned Provided always that if the commissioners shall fail to approve or disapprove such plans and specifications for twenty-one days after the same shall have been submitted to them they shall be deemed to have approved the same All such buildings or works shall be erected constructed or laid down under the superintendence and to the reasonable satisfaction of the surveyor to the commissioners and all such buildings or works so far as they affect any such sewer drain watercourse or work shall be kept in repair and maintained to the reasonable satisfaction of the commissioners by and at the expense of the Company :

- (2) If by reason of the erection of any such buildings or the construction or laying down of any such works as aforesaid any sewer drain watercourse or other work vested in or under the jurisdiction of the commissioners shall be injured or damaged the Company shall at their own expense make good such injury or damage :
- (3) Nothing in this Act contained shall be deemed or construed to prejudice diminish alter abridge or take away any of the jurisdictions rights powers or authorities now vested in the commissioners and all the jurisdictions rights powers and authorities now vested in them shall be as good valid and effectual to all intents and purposes as if this Act had not been passed :
- (4) If any difference shall arise between the commissioners and the Company as to anything to be done or not done under the provisions of this section that difference shall be referred to an arbitrator to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers on the application of either party after notice to the other.

43. If the London County Council shall within six months from the passing of this Act give the Company notice that they require for the widening of York Road in the county of London part of the land described under the heading "In the County of London" in the section of this Act the marginal note whereof is

Widening
of York
Road.

A.D. 1911. "Power to Company to purchase additional lands" the following provisions shall unless otherwise agreed in writing between the Company and the said council apply and have effect:—

(1) The Company shall within six months from the receipt of the said notice erect a fence along the line and between the points marked A B on the plan marked "E" which has been signed by the Honourable Walter Edward Guinness the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords and which plan is herein-after referred to as "the signed plan") and as soon as the said fence is erected the Company shall sell and the London County Council shall purchase the piece of land coloured red on the signed plan:

(2) Whenever the Company shall pull down the building on the piece of land coloured blue on the signed plan they shall erect a fence along the line and between the points marked B C on the signed plan and as soon as the said fence is erected the Company shall sell and the London County Council shall purchase the land coloured blue on the signed plan:

(3) Upon the completion of any such sale and purchase as aforesaid the London County Council shall execute or cause to be executed all such works as may be necessary for making the lands so sold and purchased part of York Road but the Company shall not be under any liability in respect of the making up paving or flagging or the maintenance or repair of the said lands as part of the said road:

(4) The purchase money for each of the said pieces of land shall if not agreed be determined in accordance with the provisions of the Lands Clauses Acts but no allowance shall be made to the Company by way of compensation for compulsory sale.

Provision
as to First
Garden City
Limited.

44. The following provisions for the mutual protection of the Company and the First Garden City Limited (herein-after called "the Garden City Company") shall unless otherwise agreed between the Company on the one hand and the Garden City Company and

the Hertfordshire County Council on the other apply and have A.D. 1911.
effect (that is to say) :—

(1) The Garden City Company shall convey to the Company at the price of two thousand pounds the fee simple in possession free from incumbrances of and in the lands coloured yellow on the plan marked "C" which has been signed in duplicate by the Honourable Walter Edward Guinness the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords and which plan is herein-after called "the signed plan") except the portion of the roadway crossing under the railway which lies between the points marked Z and Y on the signed plan but all the estate and interest of the Garden City Company in the said portion of roadway shall be included in the said conveyance. The payment of the said sum of two thousand pounds shall be in full satisfaction and compensation for the injurious affection of the remaining property of the Garden City Company and for all damage sustained by them by reason of the exercise of the powers of this Act and for all accommodation works to which they might otherwise have been entitled for the protection or accommodation of such remaining property. On the completion of the said purchase the Company shall in addition to the said sum of two thousand pounds pay Messieurs Balderston and Warrens the solicitors of the Garden City Company the sum of one hundred pounds such last-mentioned sum to be in satisfaction of the Garden City Company's claim against the Company in respect of the costs charges and expenses of the Garden City Company of and relating to the conveyance of the said land the deducing of the title and the negotiations connected with such purchase :

(2) The Company shall with all reasonable dispatch upon the request in writing of the Garden City Company construct the works next herein-after described namely :—

A cutting at the point marked X on the signed plan and in the line shown thereon for the purpose of enabling Norton Way to be carried under the

A.D. 1911.

Company's railway and a bridge to carry four pairs of rails over such cutting with the necessary abutments:

The said bridge shall have a span of forty feet or such wider span as the Garden City Company by such request may require and a clear headway of nineteen feet and the elevation thereof shall be approved by the Garden City Company or in case of difference between them and the Company by an arbitrator to be appointed unless otherwise agreed by the Board of Trade on the application of either party after notice to the other. The said bridge and abutments shall be constructed of such strength materials and design and in all other respects except as to elevation in such manner as the Company shall determine. No alterations of the level of the railway shall be made but the cutting shall be carried to such a depth as to give the headway aforesaid:

- (3) On the completion of the said cutting bridge abutments and works the Garden City Company shall pay to the Company the reasonable cost of making constructing and executing the same less the sum of one thousand five hundred pounds which is to be provided by the Company:
- (4) As soon as the said bridge has been constructed the Garden City Company shall at their own expense construct a roadway under the said bridge between the points marked M and N on the signed plan and they and all persons authorised by them shall have a perpetual right of way for every purpose over such roadway and the Garden City Company may if they so desire dedicate the same to the public. The said roadway shall be as to the part thereof between the said abutments of a width of not less than forty feet and as to the remainder thereof of a width of not less than sixty feet:
- (5) The Garden City Company shall pay to the Company the sum of twenty pounds per annum towards the cost of maintaining the said bridge and shall until the said roadway shall become repairable by the local or road authority at their own expense maintain the said roadway and shall indemnify the Company against all costs charges or expenses in respect of the making up or maintenance

of such roadway Provided always that the Garden City Company shall be at liberty at any time hereafter to commute the said payment of twenty pounds per annum by the payment to the Company of a lump sum of three hundred pounds : A.D. 1911.

- (6) As soon as the said roadway under the said bridge has been completed the Company may stop up so much of the roadway to the westward of such bridge as lies between the points marked Y and Z on the signed plan and upon the stopping up of the said portion of the said roadway all rights of way over the same shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site and soil of such portion of roadway But nothing in this Act contained shall authorise the Company to stop up or interfere with the said portion of roadway between the points marked Y and Z on the signed plan until the said roadway between the points marked M and N on the signed plan has been constructed :

- (7) The Company shall at the request in writing and in all things at the reasonable cost and expense of the Garden City Company construct and shall at the like cost and expense maintain a bridge over their railway with a span or spans sufficient to accommodate four pairs of rails and a clear headway of fifteen feet between the points marked V and W on the signed plan or in such other position as the Company and the Garden City Company shall agree :

The elevation of the said bridge shall be approved by the Garden City Company or in case of difference between them and the Company by an arbitrator to be appointed unless otherwise agreed by the Board of Trade on the application of either party after notice to the other The said bridge and abutments shall be constructed of such strength materials and design and in all other respects except as to elevation in such manner as the Company shall determine :

- (8) Sub-sections (2) and (4) of section 29 of the Great Northern Railway Act 1906 are hereby repealed :

A.D. 1911.

(9) The Company on the one hand and the Garden City Company and the Hertfordshire County Council on the other may agree upon any variation of or alteration in the works in this section provided for or the manner in which the same shall be executed :

(10) Any difference between the Company and the Garden City Company under sub-sections (3) and (7) hereof with reference to the reasonableness of any costs or expenses incurred by the Company for which the Garden City Company are liable shall be referred to the decision of an arbitrator to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers.

Contributions by Herts County Council and Hitchin Rural District Council and vesting of roads in county council.

45.—(1) When and so soon as the cutting and bridge referred to in sub-section (2) and the roadway referred to in sub-section (4) of the section of this Act of which the marginal note is "Provision as to First Garden City Limited" shall have been completed to the reasonable satisfaction of the Hertfordshire County Council (in this section called "the county council") so as to form with the roads in the parish of Letchworth known as Norton Way North and Norton Way South one continuous road and shall have been channelled kerbed and drained to the like satisfaction such roadway shall be deemed to be a main road and be by this Act vested as a main road in the county council.

(2) Upon the said roadway becoming vested in the county council as a main road under this section the county council shall pay to the First Garden City Limited the sum of one thousand five hundred pounds and the rural district council of Hitchin (in this section called "the district council") shall pay to the First Garden City Limited the sum of one thousand pounds.

(3) The county council may pay all expenses incurred by them under this section out of the funds and revenues which they are authorised to apply in defraying highway expenses and may borrow such sums as may be required by them for such period not exceeding sixty years as the Local Government Board shall sanction and under and subject to the provisions of section 69 of the Local Government Act 1888.

(4) The district council shall defray all expenses incurred by them under this section as special expenses incurred in respect of the contributory place of the parish of Letchworth and may

[1 & 2 GEO. 5.] *Great Northern Railway Act, 1911.* [Ch. lxxix.]

borrow such sums as may be required by them for such period not exceeding sixty years as the Local Government Board shall sanction and under and subject to the provisions of sections 233 234 and 236 to 239 both inclusive of the Public Health Act 1875 as moneys intended to be applied to special expenses incurred in respect of the said contributory place. A.D. 1911.

(5) Nothing in this Act shall impose upon the county council or the district council any liability or obligation to maintain or repair or contribute to the maintenance or repair of the said cutting and bridge.

(6) Any difference which may arise as to the true intent and meaning of sub-section (1) of this section or as to the mode of giving effect thereto or anything to be done or not to be done thereunder shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of any of the parties named in this section by the President of the Institution of Civil Engineers.

PART V.—POWERS TO THE TWO COMPANIES.

46. Subject to the provisions of this Act the two companies may make and maintain in the lines and according to the levels shown on the deposited plans and sections the widenings of railway (including therein the altering and improving of and the laying down of additional lines of rails upon such railway) herein-after described with all proper stations junctions lines of rail sidings approaches roads works and conveniences connected therewith respectively. Power to two companies to make widenings.

The widenings of railway herein-before referred to and authorised by this Part of this Act are wholly in the West Riding of the county of York and are the following (that is to say):—

WIDENINGS OF THE MAIN LINE OF THE WEST RIDING AND GRIMSBY RAILWAY OF THE TWO COMPANIES.

WIDENING FROM DONCASTER TO ADWICK JUNCTION.

A Widening (No. 1) commencing in the township of Doncaster by a junction with the said main line at a point about one chain northward of the Marshgate Junction signal box and terminating in the township of Skellow on the southern side of the said main line at a point about three chains westward of the Adwick Junction signal box;

A.D. 1911. **WIDENING FROM ADWICK JUNCTION TO HEMSWORTH SOUTH JUNCTION.**

A Widening (No. 2) commencing in the said township of Skellow at the termination of the said Widening (No. 1) and terminating in the township of North Elmsall by a junction with the said main line at the occupation under-bridge about twenty-three chains south-eastward of the Hemsworth South Junction signal box :

WIDENING FROM HEMSWORTH SOUTH JUNCTION TO NOSTELL SOUTH JUNCTION.

A Widening (No. 3) commencing in the said township of North Elmsall at the termination of the said Widening (No. 2) and terminating in the parish of Huntwick-with-Foulby and Nostell by a junction with the said main line opposite the Nostell South Junction signal box.

Height and span of bridges constructed by two companies.

47. The two companies may make the arches of the bridges for carrying the two companies' widenings over any roads of any heights and spans not less than the heights and spans of the bridges carrying the existing railway over such roads respectively.

Width of roadways over bridges constructed by two companies.

48. Subject to the express provisions of this Act the two companies may make the roadway over the bridges by which any roads will be carried over the two companies' widenings of such width between the fences thereof as the two companies think fit not being less than the width of the roadway over the bridges by which such roads are respectively carried over the existing railway.

Power to two companies to divert road and footpath.

49. The two companies may divert the road and public footpath referred to in the next following table in the lines shown upon the deposited plans and (as regards such road) according to the levels shown upon the deposited sections and subject to the provisions of this Act may stop up and cause to be discontinued as a road or footpath so much of such existing road or footpath as will be rendered unnecessary by the new portion of road or footpath so shown on the said plans (that is to say) :—

Work.	Parish or Township.	No. of Road or Footpath on Plan.
Widening (No. 1).	Bentley-with-Arksey	136 (public carriage road).
Widening (No. 1) and	South Kirkby	38 and 39
Widening (No. 2)	North Elmsall	6A 7 9 & 10 } (public footpath).

50. The two companies' widenings shall for all purposes including tolls rates and charges form part of the West Riding and Grimsby Railway of the two companies.

A.D. 1911.

Tolls &c.
on two
companies'
widenings.

51. Subject to the provisions of this Act the two companies may enter upon take use and purchase compulsorily or by agreement for the two companies' widenings and the other works authorised by this Part of this Act and for the general purposes of their joint undertaking all or any of the lands delineated on the deposited plans and described in the deposited books of reference as intended to be taken or used for the purposes of the said widenings and works respectively and may hold and use for all or any of the said purposes such of the said lands as have already been purchased by or on behalf of the two companies and the same shall be deemed to be lands acquired compulsorily under the powers of this Act.

Power to
two com-
panies to
acquire
lands.

52. And whereas in the construction of the works by this Part of this Act authorised or otherwise in exercise by the two companies of the powers of this Part of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the two companies and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners
may be
required to
sell to
two com-
panies parts
only of
certain lands
and build-
ings.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the two companies or each or any of such owner and persons are in this section included in the term "the owner" and the said properties are in this section referred to as "the scheduled properties":

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the two companies that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the two companies such portion only without the two companies being obliged or compellable to purchase the whole the two companies paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise.

A.D. 1911.

- (3) If within such twenty-one days the owner shall by notice in writing to the two companies allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the two companies have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the two companies the portion which the tribunal shall have determined to be so severable without the two companies being obliged or compellable to purchase the whole the two companies paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the two companies may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the two companies in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit. A.D. 1911.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

53. The quantity of land to be taken by the two companies under the powers of this Act by agreement for the extraordinary purposes of their joint undertaking mentioned in the Railways Clauses Consolidation Act 1845 shall not exceed fifty acres but nothing in that Act or in this Act shall exempt the two companies from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken. Lands for extra-ordinary purposes of two companies.

54. The purchase by the two companies of the lands next herein-after described which are delineated on the deposited plans is hereby sanctioned and confirmed and it shall be lawful for the two companies to hold and use the said lands for the general purposes of their joint undertaking and the same shall be deemed to be lands acquired compulsorily under the powers of this Act. Confirming purchase of lands by two companies.

The said lands are the following (that is to say) :—

A strip of land in the parish of Wakefield in the West Riding of the county of York adjoining the Calder Viaduct of the two companies on the north-eastern side thereof and extending in a north-westerly direction from the towing path of the River Calder.

A.D. 1911.

Agreements
between two
companies.

For protec-
tion of
Midland and
North
Eastern
Companies
Committee.

55. The two companies may enter into and carry into effect agreements and arrangements with respect to all or any of the matters referred to in this Part of this Act.

56. The powers of this Act with respect to the making and maintaining of the Widening (No. 2) by this Part of this Act authorised shall unless with the previous consent of the Midland and North Eastern Railway Companies Committee (herein-after called "the committee") in writing be exercised only subject to and in accordance with the following provisions:—

- (1) The two companies shall not without in every case the previous consent in writing of the committee enter upon or interfere with any lands railways sidings bridges or other works belonging to or worked by the committee except that the two companies may purchase and take and the committee may and shall sell and grant such an easement over the same as shall be necessary for the purpose of varying the junctions of the committee's railway with the railway of the two companies as widened in accordance with plans to be approved as provided by the next following sub-section:
- (2) The works of the said Widening (No. 2) where they adjoin or interfere with the junctions between the railways of the two companies and the committee at South Elmsall and South Kirkby and any variation of such junctions shall be carried out in such a manner as on the completion of the works shall leave the committee in as good a position for interchanging traffic with the two companies as they are at present and according to plans previously submitted to and reasonably approved by the engineer of the committee or in case of difference between the two companies and the committee to be approved by an arbitrator to be appointed as herein-after provided If the committee give to the two companies notice that they themselves desire to construct so much of the works of the said widening or to carry out so much of the alterations as will affect the running lines of the committee the committee may themselves execute the said works and recover the reasonable cost thereof from the two companies:
- (3) The two companies shall take all possible precautions in the execution of their works to prevent so far as reason-

ably practicable any interference with the free and uninterrupted and safe use in the ordinary manner of any railway siding or other work belonging to the committee : . . . A.D. 1911.

- (4) The two companies shall bear and on demand pay to the committee the expense of the employment by the committee during the execution of any work affecting any railway siding bridge or other work of the committee of a sufficient number of inspectors watchmen and signalmen to be appointed by the committee for watching and signalling the same with reference to and during the execution of any such work of the two companies and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the two companies or their contractors or any person in the employ of the two companies or their contractors with reference thereto or otherwise and if by reason of the construction of the said Widening (No. 2) and the works connected therewith it shall become necessary to add to or alter any signal or any electrical telegraphic or telephonic appliance upon the said railways of the committee the same shall be so added to or altered by the committee and the reasonable expense thereof shall be repaid to the committee by the two companies :
- (5) The two companies shall also bear and on demand pay to the committee any additional expense in working or maintaining the junctions with the railway of the two companies and the signals and conveniences incident to the junctions which the committee shall incur or be put to by reason or in consequence of the construction maintenance or user of the said Widening (No. 2) or the works connected therewith :
- (6) If by reason of the execution of any of the works or the failure of any such works or any act or omission of the two companies or of their contractors or of any person in the employ of the two companies or of their contractors or otherwise any railway siding bridge or other work of the committee shall be injured or damaged such injury or damage shall be forthwith made good by the two companies at their own expense or in the event of

A.D. 1911.

their failing so to do then the committee may make good the same and recover the expense thereof against the two companies :

- (7) The two companies shall at all times take all reasonable precautions in carrying out the works by this Act authorised so as not injuriously to affect any of the committee's pipes or structures or to interfere with the working of any wire line or apparatus used by the committee for the purpose of telegraphic telephonic or electric signalling communication :
- (8) If any difference shall arise between the two companies and the committee under the provisions of this section such difference shall be referred to and determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of
West Riding
County
Council.

57. In the execution of the widenings of the main line of the West Riding and Grimsby Railway the following provisions shall have effect for the protection of the County Council of the West Riding of Yorkshire (in this section called "the county council") unless otherwise agreed upon in writing between the two companies and the county council:—

- (1) Notwithstanding anything in this Act the extension or alteration of any of the bridges for carrying the under-mentioned main roads over the widened railway shall be so carried out as not to reduce the width of the roads at any part thereof to less than thirty-five feet (that is to say) :—

Nos. on Deposited Plans.	Name of Main Road.	Parish.
132	Doncaster and Selby -	Bentley-with-Arksey.
46 }	Doncaster and Tadcaster	{ Adwick-le-Street.
21 }		{ Skellow.
31	Red House and Crofton -	Hampole.

and the extension or alteration of the bridge carrying the Barnsley and Pontefract main road in the parish of Hemsworth over the widened railway shall be so carried

out as not to encroach upon or diminish the width of the said road between the fences thereof to any greater extent than is shown on the plan marked "G" signed by his Grace the Duke of Bedford K.G. the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords):

A.D. 1911.

- (2) Any authorised alteration of the level of the said Doncaster and Tadcaster main road for the purpose of the said widenings shall be so made that the altered portions shall not in any part thereof have a steeper gradient than one in thirty and the two companies shall to the reasonable satisfaction of the surveyor of the county council make proper provision for the drainage of the said road and the Doncaster and Selby main road where interfered with in pursuance of this Act:
- (3) The extension of any of the said existing bridges by this Act authorised shall be of a strength to carry a rolling load of forty tons upon a four-wheeled carriage having a wheel base of twelve feet ten inches and drawn by a locomotive weighing twenty tons with a wheel base of ten feet:
- (4) The Company shall during the execution of the said works make such temporary provision for the accommodation of traffic on the said roads as the surveyor of the county council shall reasonably approve:
- (5) Not less than one month before commencing any works affecting the said roads the two companies shall submit to the county council for their reasonable approval a plan and sections and particulars of the same and any difference between the two companies and the county council as to any such plan sections or particulars shall be determined by arbitration as herein-after provided. Provided that if before the expiration of the said period of one month the county council shall not have intimated in writing to the two companies their disapproval of the said plan sections and particulars or any requirement with respect thereto they shall be deemed to have approved thereof:

A.D. 1911.

- (6) All such bridge works and other works as aforesaid affecting the said roads shall be executed under the superintendence of the surveyor of the county council if after receiving sufficient notice of the place day and hour at which the work is proposed to be constructed he shall choose to attend and to his reasonable satisfaction :
- (7) If any difference shall arise under this section such difference shall be determined by arbitration by an arbitrator to be agreed on between the parties or failing such agreement to be appointed on the application of any of the parties by the President of the Institution of Civil Engineers.

For protection of rural district council of Hemsworth.

58. For the protection of the rural district council of Hemsworth in the West Riding of the county of York (herein-after in this section referred to as "the council") the following provisions shall unless otherwise agreed between the council and the two companies apply and have effect in the exercise of the powers of this Act :—

- (1) If the two companies interfere with any sewer or water main or other pipe belonging to the council they shall to the reasonable satisfaction of the council reinstate the same or provide a substituted sewer water main or other pipe and any sewer water main or other pipe substituted as aforesaid shall when completed be as fully under the direction jurisdiction and control of the council as the sewer or water main or other pipe for which it was substituted :
- (2) If the two companies alter the level of the road over any manhole or inspection chamber or eye belonging to the council they shall to the reasonable satisfaction of the council execute such alterations to such manhole or inspection chamber or eye as may be rendered necessary by the alteration of the level of the road :
- (3) Notwithstanding anything contained in this Act or shown on the deposited plans the two companies shall not acquire compulsorily under the powers of this Act any portion of (a) the property numbered on the deposited plans 2a in the township of South Elmsall which is more than twenty-one feet to the south of the existing southern boundary of the property of the two companies or (b)

the property numbered on the deposited plans 4 in the said township of South Elmsall to the southward of the line drawn in red between the points marked A and B upon the plan marked "J" which has been signed by his Grace the Duke of Bedford K.G. the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (one copy of which plan has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords):

A.D. 1911.

- (4) The two companies shall erect a substantial fence on the southern side of the portion of the said property No. 2a acquired by them under the powers of this Act:
- (5) The two companies may divert the public footpath which lies on the southern side of their existing railway in the fields numbered on the deposited plans 9 and 12 in the said township of South Elmsall along the southern side of their railway as widened under the powers of this Act and in that event the two companies may stop up so much of the existing footpath as will lie between the commencement and termination of such diversion:
- (6) The two companies shall extend the footbridge over the existing railway of the two companies between the fields numbered on the deposited plans 20 and 22 in the township of South Elmsall so as to cross over the said railway as widened under the powers of this Act:
- (7) Notwithstanding anything contained in this Act or shown upon the deposited plans the two companies shall not under the powers of this Act interfere with the public footpath on the property numbered on the deposited plans 37 in the said township of South Elmsall:
- (8)—(A) If within three months from the passing of this Act the council shall give to the two companies notice under their common seal that they require the footpath between the property numbered on the deposited plans 39 in the township of South Kirkby and the property numbered on the said plans 5 in the township of North Elmsall to be carried by a subway under the

A.D. 1911.

existing railway of the two companies and the widening thereof by this Act authorised the two companies shall construct a subway for carrying the said footpath under the said railway and widening (in this section called "the subway");

(B) The subway shall be of such width (not exceeding seven feet six inches measured below the spring of the arch) and such height (not exceeding eight feet measured from the crown of the arch) as the council shall in such notice specify;

(C) The council shall pay to the two companies one-half of the cost of constructing the subway under the said existing railway;

(D) The two companies shall maintain the structure of the whole of the subway but shall not be liable for the repair of the surface of the footpath or the lighting or cleansing of the subway;

(E) Subject as aforesaid the subway shall be constructed in accordance with plans and sections to be previously approved by the council or in case of difference between them and the two companies by an arbitrator to be appointed as herein-after provided:

(9) If the two companies in widening their railway obstruct the occupation road in the field numbered on the deposited plans 32 in the parish of Hemsworth which leads in a southerly direction from the road to Kinsley they shall divert so much of such occupation road as shall be so obstructed along the south-western side of their railway as widened:

(10) The two companies may divert the roadway numbered on the deposited plans 56 in the parish of Hemsworth along the western boundary of the two companies' railway as widened under the powers of this Act and in that event they may stop up so much of the existing roadway as will lie between the commencement and termination of such diversion:

(11) If any difference shall arise between the council and the two companies under the provisions of this section such difference shall on the application of either party be referred to and determined by an engineer to be

appointed as sole arbitrator by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to the arbitration.

A.D. 1911.

59. The North Eastern Railway Company shall have and be entitled to the same rights powers and privileges in respect of so much of Widening No. 1 of the main line of the West Riding and Grimsby Railway of the two companies by this Act authorised as lies between the junction therewith of Railway No. 6 authorised by the Great Central Railway Act 1907 and the junction therewith of Railway No. 7 authorised by the same Act as they now have or are entitled to in respect of the said portion of the said railway so authorised to be widened which lies between the said junctions.

Running powers to North Eastern Railway Company in respect of Widening No. 1.

60. For the protection of the Right Honourable William Charles de Meuron Earl Fitzwilliam and his successors in title (herein-after referred to as "the Earl") and of his estate in the parish of Hemsworth in the West Riding of the county of York the following provisions shall unless otherwise agreed in writing between the two companies and the Earl apply and have effect in the exercise of the powers of this Act:—

For protection of Earl Fitzwilliam.

(1) Notwithstanding anything contained in this Act or shown upon the deposited plans the two companies shall not under the powers of this Act stop up alter or divert the present occupation road numbered 24 upon the deposited plan for the said parish:

(2) Notwithstanding anything herein contained or shown upon the deposited plans and sections in carrying out Widening (No. 3) of the main line of the West Riding and Grimsby Railway of the two companies by this Part of this Act authorised (herein-after referred to as "the said widening") the two companies shall at their own expense for the benefit of the estate of the Earl carry out and unless otherwise herein provided shall at the like expense maintain the following works namely:—

(A) The two companies shall construct the bridge for carrying the said widening over the road numbered 33 upon the said deposited plan in the manner shown on the plan marked "K" which has been signed by his Grace the Duke of Bedford K.G. the Chairman of the Committee

A.D. 1911.

of the House of Lords to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) which plan is in this section referred to as "the signed plan" and such bridge shall have a span of twenty-four feet and a headway of sixteen feet six inches throughout. The two companies shall construct a roadway under the said bridge and the approach thereto on the western side of the railway in the manner shown on the signed plan and shall pitch with rubble metal and provide means of draining the surface of the said roadway and approach and if in carrying out the construction of the said widening the existing water main in the said roadway shall be interfered with the two companies shall divert such main so as to carry it under the said widening. The Earl shall after the completion of the said roadway and approach maintain the surface thereof and the water main thereunder;

- (B) The two companies shall construct the bridge for carrying the road which gives access from Kinsley Lane to Hemsworth Colliery over the said widening in the manner shown upon the signed plan and of a width of eighteen feet and the two companies shall so construct the approaches thereto that the gradients thereof shall not be steeper than the present gradients and shall pitch with rubble metal and provide means of draining the surface of the said roadway and approaches. The Earl shall after the completion of the said roadway and approaches maintain such roadway and approaches;
- (c) The two companies shall construct the bridges for carrying the said widening over the cattle creeps which give access to the field numbered 26 on the said deposited plan from the said occupation road and between the fields numbered 37 and 38 on the said deposited plan in manner shown upon the signed plan and so that such

bridges shall have a span of not less than fifteen feet and a headway of not less than fifteen feet throughout and the two companies shall metal and drain the surface of the roadways of the said cattle creeps to the line of the fences of the two companies' railway when widened. The two companies shall reinstate whatever gates or stiles exist at the south-western end of the said cattle creeps in the line of the fences of the two companies' railway when widened. The Earl shall after the completion thereof maintain the surface of the said roadways;

- (D) If the two companies shall in carrying out the said widening interfere with any culverts drains roads or other works (other than bridges) constructed for the accommodation of the estate of the Earl they shall reinstate extend or divert the same so as to preserve the drainage of and the access to the said estate:
- (3) In estimating the purchase money or compensation to be paid by the two companies for the lands of the Earl required for the said widening the value of the sites of the said roadways and approaches shall not be taken into account and no purchase money shall be payable by the two companies in respect of such sites. Provided always that the two companies shall not acquire compulsorily from the Earl any lands for the sites of the said roadways or approaches which will lie beyond the line of the fences of the two companies' railway when widened:
- (4) The Earl shall give the two companies free of charge all proper and necessary facilities for the construction of the works in this section provided for where the same will be situate on the land of the Earl which is not to be acquired by the two companies as aforesaid:
- (5) All the aforesaid works shall be carried out to the reasonable satisfaction of the Earl or in case of difference between the Earl and the two companies to the satisfaction of an arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to

A.D. 1911.

the other and the Arbitration Act 1889 and any statutory modification thereof for the time being in force shall apply to any such arbitration.

For further
protection of
Sheffield
and South
Yorkshire
Navigation
Company.

61. For the further protection of the Sheffield and South Yorkshire Navigation Company (in this section called "the navigation company") the following provisions shall unless otherwise agreed between the two companies and the navigation company have effect in the exercise by the two companies of the powers of this Act (that is to say):—

- (1) The two companies shall construct and maintain the bridge for carrying the Widening No. 1 by this Part of this Act authorised over the Flood Drain (known as the River Don) of the navigation company at Doncaster aforesaid in accordance with plans to be agreed upon between the engineer of the navigation company and the engineer of the two companies Provided always that the underside of the girders of the said bridge shall not be constructed at a lower level than the underside of the girders of the existing bridge of the two companies carrying the main line of the railway over the said Flood Drain and that openings shall be left similar to those in the said existing bridge in order to give access to the adjoining lands of the navigation company:
- (2) The two companies shall at all times hereafter maintain the said bridge of the minimum headway of the existing bridge of the two companies above the present ordinary level of the water:
- (3) The foundations of the piers or abutments of the said bridge shall be carried down to such depths below the ordinary level of the surface of the water in the said Flood Drain and shall be placed in such positions as shall be reasonably fixed by the engineer for the time being of the navigation company or in case of difference settled by arbitration as herein-after provided:
- (4) Any works which may be constructed by the two companies under the powers of this Act over or affecting any of the waterways canals or drains of the navigation company shall be carried out under the supervision and to the reasonable satisfaction of the engineer of the navigation company and in accordance

with plans sections and specifications previously submitted to and reasonably approved of by such engineer or in case of difference settled by arbitration as hereinafter provided : A.D. 1911.

- (5) Notwithstanding anything contained in this Act or shown upon the deposited plans the two companies shall not purchase or take any lands belonging to the navigation company except by agreement with the navigation company but the two companies may purchase and take and the navigation company shall sell and grant to the two companies accordingly an easement or right of using the same so far as may be necessary for the purpose of carrying the said widening across the said Flood Drain :
- (6) If any difference arise between the two companies and the navigation company under this section such difference shall be determined by an engineer to be appointed (unless otherwise agreed on) on the application of either party by the President of the Institution of Civil Engineers but nothing in this Act shall be deemed to enable the said arbitrator to direct that any work shall be made of less dimensions than by this section is prescribed in that behalf.

62. For the protection of the Hull and Barnsley Railway Company (in this section called "the Hull Company") the following provisions shall unless otherwise agreed between the two companies and the Hull Company have effect (that is to say) :— For protection of Hull and Barnsley Railway Company.

- (1) In this section the expression "the South Yorkshire Company" means the South Yorkshire Junction Railway Company the expression "property of the Hull Company" means any land railway siding or works belonging to the Hull Company or belonging to the South Yorkshire Company and worked by the Hull Company and the expression "the owning company" means the Hull Company or the South Yorkshire Company as the case may be :
- (2) Notwithstanding anything contained in this Act or shown on the deposited plans the two companies shall not as regards the lands forming part of the property of the

A.D. 1911.

Hull Company and held for the purposes of or in connection with the main line and the branch railway of the Hull Company and the Railway No. 5 referred to in sub-sections (4) and (5) of this section enter upon take or use any greater quantity thereof than shall be actually required for the purpose of constructing two additional lines of rails at the points of crossing referred to in those sub-sections and the owning company shall be at liberty to reserve out of any conveyance to the two companies of such lands all such easements and rights in or over such lands as may be necessary for maintaining and using the said railways of the owning company. The tribunal to whom any question of disputed purchase money or compensation to be paid by the two companies to the owning company shall be referred shall in assessing such purchase money or compensation have regard to the value of the easements and rights to be reserved by the owning company as aforesaid :

- (3) Notwithstanding anything contained in this Act or shown on the deposited plans the two companies shall not purchase any property of the Hull Company other than the lands to be entered upon taken or used by the two companies in accordance with the provisions of the last preceding sub-section of this section but the two companies may take and the owning company shall grant to them such easements and rights in or over such other property of the Hull Company as may be actually required for the purposes of the widenings by this Part of this Act authorised to the extent of two additional lines of rails :

The consideration to be paid by the two companies for such easements and rights as aforesaid shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement :

- (4) Subject as herein-after provided but notwithstanding any other provision of this Act or anything shown on the deposited plans and sections the two companies shall not construct the Widening (No. 3) by this Part of this Act authorised at and near the place where the same

crosses under the main line of the Hull Company from Hull to Cudworth (as required by the Hull Barnsley and West Riding Junction Railway and Dock Act 1880 to be constructed and maintained) or the diversion authorised by this Part of this Act of the existing footpath at the same place in such positions respectively or manner as to render necessary any extension or alteration of or so as to interfere with the existing bridge (as so required to be constructed and maintained) whereby the said main line of the Hull Company is carried over the railway of the two companies :

- (5) Subject as herein-after provided but notwithstanding any other provision of this Act or anything shown on the deposited plans and sections the two companies shall not construct the Widening (No. 2) by this Part of this Act authorised where the same crosses under—

(a) the branch railway of the Hull Company from Wrangbrook Junction to Wath as required by the Hull and South Yorkshire Extension Railway Act 1897 to be constructed and maintained ; or

(b) the Railway No. 5 as required by the South Yorkshire Junction Railway Act 1890 to be constructed and maintained in such position or manner as to render necessary any extension or alteration of or so as to interfere with the existing bridges (as so required to be constructed and maintained) whereby the said branch railway of the Hull Company and the said Railway No. 5 are respectively carried over the railway of the two companies :

- (6) The works of the said Widening (No. 3) where they adjoin or interfere with the junction of the existing branch railway of the Hull Company with the main line of the two companies at or near Hemsworth South Junction signal box and any variation of such junction shall be carried out in such a manner as on completion of the works shall leave the Hull Company in as good a position for exchanging traffic with the two companies as they are at present and according to plans previously submitted to and reasonably approved by the engineer of the Hull Company or in case of difference between the Hull Com-

A.D. 1911.

pany and the two companies by an arbitrator to be appointed as herein-after provided. If the Hull Company give to the two companies notice that they themselves desire to construct so much of the works of the said widening or to carry out so much of the alterations as will affect the running lines or sidings of the Hull Company the Hull Company may themselves execute the said works and recover the reasonable cost thereof from the two companies:

- (7) Nothing contained in this section shall be construed as in any way prejudicing or derogating from any rights powers or privileges to which the two companies are or would but for the enactment of the provisions of this section have been entitled under or by virtue of the said Hull and South Yorkshire Extension Railway Act 1897 or the said South Yorkshire Junction Railway Act 1890 or the Hull Barnsley and West Riding Junction Railway and Dock Act 1880 or any Act or Acts relating to the said main line of the Hull Company :
- (8) Subject and without prejudice to the rights powers and privileges of the two companies under or by virtue of any of the Acts referred to in the last preceding sub-section of this section the two companies and their contractors agents servants or workmen shall not during the construction or in the subsequent maintenance or user of the works by this Act authorised interfere with the free uninterrupted and safe maintenance and use of any railway and works belonging to or worked by the Hull Company or the traffic thereon respectively :
- (9) The two companies shall bear and on demand pay to the Hull Company the reasonable expense of the employment by the Hull Company during the execution or repair of any work by this Act authorised affecting any property of the Hull Company of such inspectors watchmen and signalmen to be appointed by the Hull Company as may be necessary for watching and signalling the same with reference to and during the execution or repair of any such work of the two companies and for preventing all inter-

ference obstruction danger and accident from any of the operations or from the acts or defaults of the two companies or their contractors or any person in the employment of the two companies or of their contractors with reference thereto or otherwise : A.D. 1911.

(10) If by reason of the construction or working of the widenings of the two companies it shall become necessary to add to or alter any signal cabins signal posts signals or other similar works on any property of the Hull Company the Hull Company may make such additions and alterations and the reasonable expense of such additions and alterations shall be repaid by the two companies on demand and the cost of maintaining and working any such additional signal cabins signal posts signals or other similar works and the increased cost (if any) of maintaining and working any such altered signal cabins signal posts signals or other similar works shall at the end of every half-year be repaid by the two companies to the Hull Company :

(11) If by reason of the construction or maintenance of any works authorised by this Act or by reason of any failure thereof or any act or omission of the two companies or their contractors or any servants or workmen employed by them respectively the property of the Hull Company be injured or the traffic on any railway belonging to or worked by the Hull Company be interfered with the two companies shall pay to the Hull Company all costs charges damages and expenses which the Hull Company or the South Yorkshire Company may thereby reasonably be put to or incur :

(12) Any dispute arising under the provisions of this section between the two companies and the Hull Company or the South Yorkshire Company shall be referred to an arbitrator to be agreed upon between the parties or failing such agreement to be appointed on the application of either party by the Board of Trade.

63. For the further protection of the Hull and Barnsley and Great Central Railways Joint Committee (in this section called "the committee"), the following provisions shall unless otherwise

For further protection of Hull and Barnsley and

A.D. 1911. agreed between the two companies and the committee have effect
(that is to say) :—

Great
Central Rail-
ways Joint
Committee.

(1) The expression “property of the committee” where used in this section shall include any land belonging to the committee or any railway siding or work belonging to the committee and any land which the committee have power to purchase or take for the purposes of their railways authorised by the Hull and Barnsley Railway Act 1909 (in this section referred to as “the Act of 1909”) in respect of which the committee have served notice to treat :

(2) Notwithstanding anything contained in this Act or shown on the deposited plans the two companies shall not enter upon take or use any greater quantity of the property of the committee than shall be actually required for the purpose of constructing two additional lines of rails and the committee shall be at liberty to reserve out of any conveyance to the two companies of lands forming part of such property all such easements and rights in or over such lands as may be necessary for constructing maintaining and using the railways authorised to be constructed by the committee under the Act of 1909 The tribunal to whom any question of disputed purchase money or compensation to be paid by the two companies to the committee shall be referred shall in assessing such purchase money or compensation have regard to the value of the easements and rights to be reserved by the committee as aforesaid :

(3) Subject as herein-after provided but notwithstanding any other provision of this Act or anything shown on the deposited plans or sections the two companies shall not construct the Widening (No. 1) authorised by this Act of the main line of the West Riding and Grimsby Railway of the two companies where the same crosses under the Railway No. 2 of the committee authorised by the Act of 1909 (a) in such position or manner as to interfere with the construction of the said Railway No. 2 as required by the Act of 1909 to be constructed and maintained or as to render it necessary for the committee to construct the bridge (as so required to be constructed and maintained) whereby the said Railway No. 2 will be carried over the said main line of the two companies

(including the said widening thereof) of greater dimensions than was provided by section 26 of the Act of 1909 or to alter such bridge if so constructed or (b) so as to interfere with such bridge if so constructed :

A.D. 1911.

Provided that nothing contained in this section shall be construed as prejudicing or derogating from any rights powers or privileges to which the two companies are or would but for the enactment of the provisions of this section have been entitled under or by virtue of the Act of 1909 :

- (4) The power of the committee to purchase and take and the obligation of the two companies to sell and grant to the committee such an easement or right as shall be necessary for the purpose of constructing using and maintaining the said Railway No. 2 authorised by the Act of 1909 on or across the property of the two companies shall be deemed to extend to such easement or right as shall be necessary for the purpose of constructing using and maintaining the said Railway No. 2 across the said Widening (No. 1) by this Act authorised of the railway of the two companies :
- (5) Subject and without prejudice to the rights of the two companies under or by virtue of the Act of 1909 the two companies and their contractors agents servants or workmen shall not during the construction or in the subsequent maintenance or user of the works by this Act authorised interfere with the free uninterrupted and safe construction maintenance and use of the railways and works of the committee or the traffic thereon respectively :
- (6) If by reason of the construction or maintenance of any works authorised by this Act or by reason of any failure thereof or any act or omission of the two companies or their contractors or any servants or workmen employed by them respectively the property of the committee be injured or the traffic on the railways of the committee be interfered with the two companies shall pay to the committee all costs charges damages and expenses which the committee may thereby reasonably be put to or incur :

A.D. 1911.

- (7) Any dispute arising under the provisions of this section between the two companies and the committee shall be referred to an arbitrator to be agreed upon between the parties or failing such agreement to be appointed on the application of either party by the Board of Trade.

PART VI.—POWERS TO THE JOINT COMMITTEE.

Confirming
purchase of
lands by
joint
committee.

64. The purchase by the joint committee of the lands next herein-after described which are delineated on the deposited plans is hereby sanctioned and confirmed and it shall be lawful for the joint committee to hold and use the said lands for any of the purposes of their undertaking and the same shall be deemed to be lands acquired compulsorily under the powers of this Act.

The said lands are the following (that is to say) :—

Lands in the parish of Cantley in the West Riding of the county of York adjoining the railway of the joint committee—

- (A) A strip of land on the southern side of the said railway lying between Carr Lane and Bessacarr Lane ;
- (B) A strip of land on the southern side of the said railway bounded on the south by the property of the Dearne Valley Railway Company ;
- (C) A strip of land on the northern side of the said railway bounded on the north by the property of the Dearne Valley Railway Company ;
- (D) A strip of land adjoining the southern side of the said railway and extending between points respectively about four and a half chains and about eleven chains westward of the mile post on the said railway denoting one hundred and sixteen and a quarter miles from Huntingdon South Junction.

PART VII.—PURCHASE OF PALACE UNDERTAKING.

Confirming
scheduled
agreement
with Palace
Company.

65. The agreement between the Palace Company of the one part and the Company of the other part as set forth in the Fourth Schedule to this Act (which agreement is in this Part of this Act referred to as “the Palace agreement”) is hereby confirmed and made binding upon the respective parties thereto and shall be carried into effect accordingly.

66. Subject to the provisions of the Palace agreement the Palace undertaking shall as on and from the date of transfer be by virtue of this Act transferred to and vested in and be held by the Company freed and discharged from all rent charges liens claims of landowners and others mortgages unpaid purchase moneys bonds and other incumbrances upon or affecting the Palace undertaking and from all easements and restrictive covenants affecting the Palace undertaking and from all debts liabilities obligations and engagements of the Palace Company (except under continuing contracts) and from all claims and demands whatsoever on the part of any of the creditors of the Palace Company or of any other person or persons in respect of any debt or liability of the Palace Company or of the holders of debenture stock bonds of indebtedness or ordinary stock of the Palace Company The Palace undertaking shall as on and from the date of transfer for all purposes including tolls rates and charges form part of the undertaking of the Company.

A.D. 1911.
Vesting
Palace
undertaking
in Company.

67. The Palace Company shall on the date of transfer deliver to the Company all plans deeds books papers and documents whatsoever in their possession relating to the Palace undertaking and shall execute and deliver and procure all other necessary parties to execute and deliver all such assurances and documents as may be reasonably required by the Company Provided that the Company shall permit the liquidator at all reasonable times to have access to the said plans deeds books papers and documents for the purpose of inspecting the same and making copies thereof or extracts therefrom and shall afford to the liquidator all reasonable facilities for that purpose.

Palace
Company to
deliver
deeds &c. to
Company.

68. As from the date of transfer the Palace Company shall by virtue of this Act be dissolved except for the purpose of winding up their affairs and distributing the purchase money or consideration and other moneys payable by the Company under the Palace agreement and any other assets of the Palace Company which shall not form part of the Palace undertaking and when and so soon as such winding up and distribution shall have been effected as by this Act provided the Palace Company shall by virtue of this Act be finally dissolved.

Dissolution
of Palace
Company.

69. As from the date of transfer the Palace Company shall subject to the provisions of this Act be wound up in the same manner and with the same incidents as if they were a company registered under the Companies (Consolidation) Act 1908 and had on the passing

Winding up
of Palace
Company.

A.D. 1911. of this Act duly passed a special resolution requiring such company to be wound up voluntarily and for the purposes of such winding up the said company shall from and after the passing of this Act be deemed to be registered in England under the said Act and resolutions of meetings of the Palace Company convened and held in pursuance of and in accordance with the provisions contained in the Acts of the Palace Company and the Acts incorporated therewith may and shall take effect as resolutions of a company duly registered. Provided that sections 222 and 223 of the said Companies (Consolidation) Act 1908 shall not apply with respect to any such winding up as aforesaid.

As to
payment of
purchase
money.

70.—(1) The sum of eighteen thousand four hundred and sixteen pounds payable by the Company under the Palace agreement shall be paid by the Company to the liquidator within fourteen days after his appointment and until such payment the Company shall as from the date of transfer hold the said sum of money in trust for the liquidator. The receipt of the liquidator for the said sum of money shall be a good and sufficient discharge to the Company for the payment thereof and the Company shall not be under any obligation to see to the application of the said sum of money or be responsible or accountable for the mis-application or non-application thereof.

(2) The sum so payable by the Company to the liquidator shall subject to the provisions of the Companies (Consolidation) Act 1908 with respect to voluntary winding up be applied by the liquidator in the manner and in the order following (that is to say):—

First In payment of the costs charges directors' and all other fees and expenses of the Palace Company of and in relation to the negotiation for and the preparation and execution of the Palace agreement and the carrying out and completion of the sale and purchase of the Palace undertaking and in relation to the Bill for this Act and to the dissolution and winding up of the Palace Company and the distribution of the said sum of money in so far as the sum of five hundred pounds mentioned in the Palace agreement and the amount to be repaid by the Company to the Palace Company in respect of overpaid interest under paragraph 3 of the Palace agreement are not sufficient for the discharge of the same;

Secondly In payment to each holder of debenture stock of the Palace Company of the sum of one hundred pounds in

respect of each one hundred pounds of such stock held by him and so in proportion for any less amount; A.D. 1911.

Thirdly In payment to each holder of bonds of indebtedness of the Palace Company of the sum of one hundred pounds in respect of each one hundred pounds of such bonds held by him and so in proportion for any less amount;

Fourthly In payment to each holder of ordinary stock of the Palace Company of the sum of eight pounds in respect of each one hundred pounds of such stock held by him and so in proportion for any less amount;

Fifthly In payment of such remuneration to officers clerks and servants of the Palace Company as the directors thereof shall think fit:

And the holders of such debenture stock and bonds of indebtedness shall not for the purposes of the said provisions of the Companies (Consolidation) Act 1908 be deemed to be creditors of the Palace Company in respect of any interest due or accrued due thereon.

(3) The said payments to be made to the holders of debenture stock bonds of indebtedness and ordinary stock of the Palace Company shall be in full satisfaction of all claims and demands by such holders against the Palace Company or the Palace undertaking in respect of the said debenture stock bonds of indebtedness and ordinary stock and all interest or dividends thereon.

71. Notwithstanding the vesting of the Palace undertaking in the Company or anything contained in the Railways Clauses Act 1863 the holders of stock of the Palace Company shall not by reason of such vesting become shareholders of the Company nor shall such holders have any right or claim whatsoever upon or against the Company or their undertaking or the Palace undertaking.

Holder of stock of Palace Company not to be shareholder of Company.

72. Upon payment to the holders of debenture stock or ordinary stock or bonds of indebtedness of the Palace Company of any moneys to which such holders may respectively be entitled under the provisions of this Act the certificates for such debenture stock or ordinary stock or bonds of indebtedness shall be surrendered to the liquidator and cancelled by him.

Certificates for stock &c. to be cancelled.

73. If the certificates for any debenture stock or ordinary stock of the Palace Company or any bonds of indebtedness of that Company be lost or destroyed then upon proof thereof and upon

Provision as to loss of certificates &c.

A.D. 1911. — an indemnity being given against any claim in respect of such lost or destroyed certificates or bonds to the satisfaction of the liquidator the liquidator shall pay to the person entitled to such certificates or bonds the sum in cash to which he would be entitled upon any such winding up as aforesaid if such certificates or bonds had been surrendered by him as herein-before provided.

Trustees &c.
to accept
payments in
lieu of secu-
rities of
Palace
Company.

74. Trustees executors and administrators being holders of any debenture stock or ordinary stock of the Palace Company or of any bonds of indebtedness of that company may and shall accept any moneys payable under the provisions of this Act in substitution for such debenture stock or ordinary stock or bonds of indebtedness and may and shall hold dispose of or otherwise deal with such moneys in all respects as they might have held disposed of or otherwise dealt with such debenture stock or ordinary stock or bonds of indebtedness or the proceeds of sale thereof and no such trustee executor or administrator shall incur any liability whatsoever by accepting any payment so made to him.

Capital
powers of
Palace
Company.

75. On the vesting of the Palace undertaking in the Company all the unexercised powers of the Palace Company of raising capital shall be and the same are hereby extinguished.

As to
officers of
Palace
Company.

76. Notwithstanding the vesting of the Palace undertaking in the Company the secretary and other officers (if any) and the clerks and servants of the Palace Company shall not be or become officers clerks or servants of the Company but the Palace Company shall discharge all obligations which may be due to such secretary officers clerks and servants respectively or any of them.

Arrange-
ments
between
Company
and
Alexandra
Park
Trustees.

77. As from the date of transfer the following provisions for the mutual benefit of the Company and the Alexandra Park Trustees (in this section called "the trustees") shall unless otherwise agreed between the Company and the trustees apply and have effect (that is to say) :—

- (1)—(i) The trustees shall have full and free liberty for themselves and all other persons by them lawfully authorised in common with all other persons entitled to the like liberty of passing and repassing on foot only at all times across the portion of the terrace over the Alexandra Palace Station and the steps and roadway leading thereto coloured red on the plan marked "B" which has been signed in duplicate by the Honourable

Walter Edward Guinness the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which plan has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) which plan is herein-after in this section referred to as "the signed plan" but the trustees shall not be entitled to any right in or over any portion of the said terrace other than the said portion coloured red as aforesaid; A.D. 1911.

(ii) The Company shall be at liberty to remove any portion of the said terrace other than the portion coloured red on the signed plan provided they make good any damage to the building known as "the Alexandra Palace" which may be caused by such removal;

(iii) The Company shall also be entitled to remove the portion of the said terrace coloured red as aforesaid and the said steps on the terms of providing the trustees with a satisfactory substituted means of access to the Alexandra Palace and making good any damage to the palace which may be caused by such last-mentioned removal. Any difference between the Company and the trustees as to whether any substituted means of access is or is not satisfactory shall be determined by arbitration by an arbitrator to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to any such arbitration;

(iv) The Company shall be entitled to support from the walls and abutments of the Alexandra Palace for the said terrace and the existing glass roofing over the Alexandra Palace Station and any substituted covering or roofing which they may erect over such station in lieu of the existing terrace or glass roofing;

(v) The Company shall maintain and repair the portion of the said terrace and the steps leading thereto coloured red on the signed plan or any means of access to the Alexandra Palace substituted therefor as aforesaid:

A.D. 1911.

(2)—(i) The Company shall have full and free and exclusive liberty for themselves and all other persons lawfully authorised by them to use free of charge the rooms offices passages and accommodation in the basement of the Alexandra Palace used by the Palace Company for the purposes of their undertaking on the first day of January one thousand nine hundred and ten;

(ii) The trustees shall maintain and repair the structures of the said rooms offices and passages:

(3) The Company will grant to the trustees a lease for a term of twenty-one years at a nominal rent of the strip of land coloured blue on the signed plan subject to a proviso for determination by the Company in the event of their requiring the said strip of land or any part thereof for the purposes of their undertaking.

PART VIII.—REVIVAL OF POWERS AND EXTENSION OF TIME.

Revival of powers to construct certain railways and parts of railways authorised by Acts of 1898 and 1899.

78. The powers of the Company for making completing and maintaining—

(A) Railway (No. 1) Railway (No. 2) Railway (No. 5) and Railway (No. 6) (Loop Line Enfield to Stevenage) authorised by the Act of 1898 (except the portions of the said Railways (No. 1) and (No. 2) which the Company were authorised to abandon under the provisions of the Act of 1899);

(B) So much of the Deviation Railway (No. 2) authorised by the Act of 1899 as is not abandoned under the provisions of this Act;

are hereby revived and such powers may be exercised by the Company at any time during three years from the passing of this Act and sections 12 13 and 14 of the Act of 1898 and sections 10 11 and 12 of the Act of 1899 shall be read and have effect accordingly. On the expiration of the said period the powers hereby revived for making and completing the said railways shall cease except as to so much thereof as shall then be completed.

Revival of powers and extension of time for purchase of lands authorised by

79. The powers granted to the two companies by the Great Central Railway Act 1907 for the compulsory purchase or use of the lands required for the purposes of or in connection with the Railway (No. 8) described in and authorised by that Act are hereby revived and extended and may be exercised at any time

[1 & 2 GEO. 5.] *Great Northern Railway Act, 1911* [Ch. lxxix.]

during three years from the twenty-sixth day of July one thousand nine hundred and eleven but on the expiration of the said period the said powers shall cease except so far as such powers shall then have been exercised.

A.D. 1911.
Great
Central Rail-
way Act
1907.

80. The time limited by the Great Central Railway Act 1907 for the completion of the Railway (No. 8) described in and authorised by that Act is hereby extended until the twenty-sixth day of July one thousand nine hundred and fifteen and sections 69 70 and 82 of the said Act shall be read and have effect accordingly.

Extension
of time for
construction
of railway
authorised
by Great
Central
Railway Act
1907.

PART IX.—ABANDONMENT OF RAILWAYS.

81. The Company shall abandon the construction of the railways and portions of railways following (that is to say):—

Company
may abandon
construction
of certain
authorised
railways.

Railways (No. 1) (No. 2) (No. 3) (No. 4) and (No. 5) described in and authorised by the Great Northern Railway Act 1894;

Railway (No. 1) described in and authorised by the Great Northern Railway Act 1895;

Railways (No. 7) and (No. 8) described in and authorised by the Act of 1898;

So much of Deviation Railway (No. 2) described in and authorised by the Act of 1899 as lies between the point of commencement of the Railway (No. 1) authorised by this Act and the termination of the said authorised Deviation Railway;

Deviation Railways (No. 3) and (No. 4) described in and authorised by the Act of 1899.

82. The abandonment by the Company under the authority of this Act of any portion of any railway or works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such

Compensation for
damage to
land by entry
&c. for
purposes of
railways
abandoned.

A.D. 1911. land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or in any of the Acts referred to in the last preceding section of this Act.

Compensation to be made in respect of portions of railways abandoned.

83. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any portions of the railways or works authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

PART X.—PROVISIONS APPLICABLE TO THE COMPANY AND THE TWO COMPANIES.

Protection of gas and water mains of local authorities.

84. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Power to deviate in construction of railways widenings and works.

85. The Company and the two companies in constructing the railways widenings and works (including the new footpaths and diversions of footpaths) by this Act authorised to be constructed by them respectively may deviate from the lines thereof shown on the deposited plans to the extent of the limits of deviation marked on such plans respectively and may deviate from the levels thereof shown on the deposited sections to any extent not exceeding five feet upward or downward.

Underpinning of houses near works.

86. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of such works it

may be necessary to underpin or otherwise strengthen the same A.D. 1911.
Therefore the Company or the two companies (as the case may be) at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as herein-after provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

(1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :

(2) Each such notice if given by the Company or the two companies (as the case may be) shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office or offices of the company or companies executing the works :

(3) If any owner lessee or occupier of any such house or building or the Company or the two companies (as the case may be) shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes or dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade and the Arbitration Act 1889 shall apply to the reference :

(4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company or the two companies (as the case may be) may and shall proceed forthwith so to underpin or strengthen the said house or building :

A.D. 1911.

- (5) The Company or the two companies (as the case may be) shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company or the two companies (as the case may be) such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of such company or companies then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee such company or companies shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the company or the two companies (as the case may be) from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Company and two companies not liable to repair surface of road gradient of which is not increased.

87. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 neither the Company nor the two companies shall be liable to maintain the surface of any road or public highway which shall be carried over the new railways the Great Northern widenings or the two companies' widenings by a bridge or bridges unless the levels of such

road or public highway shall be permanently altered so as to increase the gradient of any part thereof. Provided that nothing in this section contained shall relieve the Company or the two companies from any liability which they were under immediately before the passing of this Act for the maintenance of the surface of any road or public highway. A.D. 1911

88. Except so far as may be otherwise agreed under the provisions of the section of this Act of which the marginal note is "Agreements with county councils and others as to construction and maintenance of works" the new roads and footpaths by this Act authorised and all roads and footpaths as diverted under the powers of this Act shall be respectively maintained and repaired by the respective bodies or persons liable to maintain and repair other public roads and footpaths in the districts in which such new and diverted roads and footpaths are respectively situate. Repair of
roads foot-
paths &c.

89.—(1) The Company or the two companies on the one hand so far as relates to any of the works (including the new footpath and diversions of footpaths) by this Act authorised to be constructed by such companies respectively and any county borough or district council company or person on the other hand may enter into and carry into effect any agreements or arrangements for or with respect to the construction of such works or any of them and contributions by any such council company or person to the cost of such construction and for or with respect to the maintenance and repair of any new roads or footpaths or diversions of roads or footpaths by this Act authorised. Agreements
with county
councils and
others as to
construction
and mainten-
ance of
works.

(2) The purposes of any such agreement shall be deemed to be purposes of the public Acts under which any county borough or district council being a party to such agreement have jurisdiction and any expenses incurred by such council pursuant or in relation to any such agreement shall be deemed to be expenses incurred for the purposes of those Acts and may be defrayed accordingly.

(3) If any work executed by a county borough or district council in pursuance of any such agreement involves an alteration of a telegraphic line belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration as if the county borough or district council were "undertakers" within the meaning of that Act.

A.D. 1911.

Stopping up
roads in
case of
diversion.

90. Where this Act authorises the diversion of a road or public footpath and the stopping up of an existing road or public footpath or any portion thereof such stopping up shall not take place until in the case of a new road the new road is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company or the two companies (as the case may be) on the one hand and the road authority on the other hand until two justices shall have certified that the new road has been completed to their satisfaction and is open for public use and in the case of a public footpath until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use.

Before applying to the justices for their certificate in the case of a new road the Company or the two companies (as the case may be) shall give to the road authority seven days' notice in writing of their intention to apply for the same.

As from the completion of the new road to the satisfaction of the road authority or as from the date of the said certificate as the case may be all rights of way over or along the existing road or portion thereof or over or along the existing footpath or portion thereof shall be extinguished and the Company or the two companies (as the case may be) may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site and soil of the portion of road or footpath stopped up so far as the same is bounded on both sides by lands of the Company or companies appropriating such site.

Restrictions
on stopping
up roads.

91. Subject to the provisions of the section of this Act the marginal note whereof is "Street works at Peterborough" neither the Company nor the two companies shall stop up any road or portion thereof under the powers of this Act unless they are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree.

As to
private
rights of
way.

92.—(1) All private rights of way over any lands acquired compulsorily under the powers of this Act shall as from the date of such acquisition be extinguished except where otherwise expressly provided.

(2) The Company or the two companies (as the case may be) shall make full compensation to all parties interested in

respect of any such rights and in respect of any private rights of way over any portion of any road or footpath by this Act authorised to be stopped up or diverted or over any level crossing by this Act authorised to be abolished and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. A.D. 1911.

93. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or the two companies (as the case may be) any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rent charges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Power to take easements &c. by agreement.

94. The powers for the compulsory purchase of lands under or for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

95.—(1) In exercising the powers by this Act conferred upon the Company and the two companies respectively of constructing the widening from Doncaster to Shaftholme Junction and the Widening (No. 1) from Doncaster to Adwick Junction by this Act authorised across the roads respectively numbered on the deposited plans 96 and 138 in the parish of Bentley-with-Arksey on the level as shown on the deposited sections the Company or the two companies (as the case may be) may lay down on the said roads respectively two additional lines of rails but no more. Provided always that the Board of Trade may if it appears to them necessary for the public safety or convenience at any time after the laying down of such additional lines of rails (a) require the Company within such time as the Board of Trade directs and at the expense of the Company to carry the said road numbered 96 over the railway by means of a bridge instead of crossing the same on the level (b) require the two companies within such time as the Board of Trade directs and at the expense of the two companies to construct a road in extension of the proposed diversion of road in the said parish of Bentley-with-Arksey shown on the deposited plans which will connect Watch House Lane with Bentley Road. Level crossings in Bentley-with-Arksey.

A.D. 1911.

(2) When the said road numbered 96 is so carried over the railway as aforesaid the Company may close the level crossing of the said road numbered 96 and when the said extension of the said diversion is completed the two companies may close the level crossing of the said road numbered 138 and upon the closing of the said level crossings respectively all rights of way over the same shall be extinguished and the Company or the two companies (as the case may be) may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site and soil of the level crossing so closed.

(3) Section 8 of the Railways Clauses Act 1863 shall extend and apply with respect to any lands required to be taken by the Company or the two companies (as the case may be) for the purpose of any work required by the Board of Trade under this section as if such work were a work required for the public safety and directed to be executed by the Board of Trade under section 7 of the Railways Clauses Act 1863.

For
protection
of Dun
Drainage
Commis-
sioners.

96. For the protection of the Dun Drainage Commissioners (in this section called "the commissioners") the following provisions shall unless otherwise agreed between the commissioners on the one hand and the Company or the two companies as the case may be on the other apply and have effect in the exercise of the powers of this Act:—

In constructing the railway widenings between Doncaster and Adwick and Doncaster and Shaftholme Junction the Company or the two companies as the case may be shall make and maintain flood openings and culverts under the said widenings of the same character and sectional area as those now existing under the present railways:

In constructing the said widenings over the River Don at or near Doncaster the Company and the two companies respectively shall so construct the new bridges to carry such widenings over the said river that the sectional areas of the said river under the widenings respectively shall not be less than the respective sectional areas of the said river under the railways so widened. The plans and sections for the works mentioned in this section shall be submitted to and be subject to the reasonable approval of the engineer for the time being of the commissioners and in the event of any difference between the commissioners and the Company or the

two companies as the case may be as to such plans and sections or as to the sufficiency of the works to be carried out thereunder the same shall be determined by an engineer to be appointed by the President for the time being of the Institution of Civil Engineers on the application of either party. The commissioners shall according to their rights and powers grant the Company and the two companies respectively all reasonable and proper facilities for constructing the said bridges in accordance with such plans and sections as aforesaid.

A.D. 1911.

97. The following provisions for the mutual protection of the Company and the two companies shall unless otherwise agreed in writing between the Company and the two companies under their common seals apply and have effect in the exercise of the powers of this Act:—

For mutual protection of Company and two companies.

(1) Notwithstanding anything contained in this Act or shown upon the deposited plans—

(A) The Company shall not enter upon take use purchase or interfere with any property of the two companies except that the Company may purchase and take and the two companies may and shall sell and grant according to their estate and interest in and subject to all easements rights and covenants affecting the property of the two companies such an easement or right as shall be necessary for the purpose of constructing using and maintaining the widening from Doncaster to Shaftholme Junction by this Act authorised so far as the same is according to this Act to be constructed on across or under the property of the two companies;

(B) The two companies shall not enter upon take use purchase or interfere with any property of the Company except that the two companies may purchase and take and the Company may and shall sell and grant according to their estate and interest in and subject to all easements rights and covenants affecting the property of the Company such easement or right as shall be necessary for the purpose of constructing using and maintaining the widening of the West Riding and Grimsby Railway from Doncaster to Adwick Junction by this Act authorised so far as the same is according to this Act to be constructed on across or over the property of the Company:

A.D. 1911.

(2). All works to be constructed by the Company affecting the property of the two companies and all works to be constructed by the two companies affecting the property of the Company shall be constructed and maintained in such manner and upon such terms and conditions as may be agreed between the Company and the two companies or in case of difference as shall be determined by an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers on the application of either party after notice to the other and the Arbitration Act 1889 or any statutory modification thereof shall apply to the arbitration.

Running powers to Lancashire and Yorkshire Railway Company over widenings.

98. So far as any portion of any railway of the Company or of the two companies over which the Lancashire and Yorkshire Railway Company possess running powers rights or privileges is widened under the powers of this Act such running powers rights and privileges shall extend and apply to the widening of such portion of railway.

PART XI.—FINANCIAL PROVISIONS.

Company may apply their funds towards purposes of Act and may raise additional capital.

99. The Company may apply to the purposes of this Act to which capital is properly applicable any of the moneys which they are already or which by virtue of any Act to be passed during the present session of Parliament they may be authorised to raise and which may not be required by them for the purposes for which the same were authorised to be raised and the Company may for the purposes of this Act and for the general purposes of their undertaking subject to the provisions of Part II. of the Companies Clauses Act 1863 raise in addition to the sums of money which they are already authorised to raise any additional sum or sums not exceeding in the whole one million pounds by the issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partly by any one or more of those methods respectively which shares or stock shall form part of the general capital of the Company and such new ordinary shares or stock may if the Company think fit be created and issued in accordance with the provisions of section 7 of the Great Northern Railway (Capital) Act 1890.

Shares not to vest until one-fifth part paid up.

100. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

101. The Company may if they think fit attach to all or any new shares or any class of new shares created under the powers of this Act any total or partial permanent or temporary restriction of the rights of voting and other qualification of the holders thereof Shares to which any such restriction shall be attached shall be distinguished by some special designation.

A.D. 1911.

Votes in respect of new shares.

102. All shares of the same class created by the Company under this Act shall confer like privileges and shall bear like dividends or interest and be subject to like restrictions (if any).

Shares of same class to have like privileges.

103. The Company may in respect of the additional capital of one million pounds which they are by this Act authorised to raise from time to time borrow on mortgage of their undertaking any moneys not exceeding in the whole three hundred and thirty-three thousand three hundred and thirty-three pounds Provided that in respect of every one hundred thousand pounds of such additional capital issued and accepted and one-half whereof shall have been paid up the Company may borrow a sum or sums not exceeding in the whole thirty-three thousand three hundred and thirty-three pounds But no part of any of the before-mentioned sums of thirty-three thousand three hundred and thirty-three pounds shall be borrowed until shares for so much of the said portion of the additional capital in respect of which the borrowing powers are to be exercised as is to be raised by means of shares are issued and accepted and one-half of such portion of capital is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such portion of capital have been issued and accepted and that one-half of such portion has been paid up and that not less than one-fifth part of the amount of each separate share in such portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one-half of so much of such portion of the said additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and paid up bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as the said portion of capital is raised by shares that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the

Power to borrow on mortgage.

[Ch. lxxix.] *Great Northern Railway Act, 1911.* [1 & 2 GEO. 5.]

A.D. 1911. Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Existing mortgages to have priority.

104. All mortgages granted by the Company in pursuance of any Act of Parliament and which shall be subsisting at the time of the passing of this Act shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Debenture stock.

105. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of this Act created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all principal moneys secured by such mortgages.

Application of moneys.

106. All moneys raised by the Company under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Act and to the general purposes of the Company being in every case purposes to which capital is properly applicable.

Receipt in case of persons not *sui juris*.

107. If any money is payable to a holder of shares or stock in or of a mortgage or debenture stock of the Company being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Interest not to be paid on calls paid up.

108. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposits for future Bills

109. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any

standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

A.D. 1911.
not to be
paid out of
capital.

110. The Great Central Railway Company the Great Eastern Railway Company and the joint committee may respectively apply to the purposes of this Act in which they are respectively interested to which capital is properly applicable any of the moneys which they now have in their hands or which they are already or which by virtue of any Act to be passed during the present session of Parliament they may be authorised to raise and which may not be required by them for the purposes to which the same are made specially applicable.

Great
Central and
Great
Eastern
Railway
Companies
and joint
committee
may apply
funds to
purposes
of Act.

PART XII.—MISCELLANEOUS PROVISIONS.

111. Notwithstanding anything contained in the Great Northern Railway Act 1846 it shall be lawful for the Company at any time after they shall have acquired the bridge in the metropolitan borough of St. Pancras carrying Congreve Street over their railway to remove the said bridge.

Power to
Company to
remove Con-
greve Street
bridge.

112. So much of the Act of 1899 as relates to the construction of works in the city and borough of Peterborough or to any other works connected therewith or to any matter connected with or incidental to such construction is hereby repealed.

Repeal of
certain pro-
visions of
Act of 1899.

113. And whereas lands have from time to time been purchased or acquired by the Company and by the Company jointly with other companies adjoining or near to railways or stations belonging to the Company or belonging to or managed by the Company jointly with such other companies but such lands are not immediately and may not hereafter be required for the purposes of the undertaking of the Company or of the joint undertakings of the Company and any such other company as the case may be and it is expedient that further powers should be conferred upon the Company and such other companies respectively with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Company or any such other company with which that Act is incorporated the Company or the Company and any such other company as the case may be shall not be required to sell or dispose

Power to
lease land
&c.

A.D. 1911. of any such lands but may retain hold or use or may lease or otherwise dispose of the same.

For protec-
tion of
London
County
Council.

114. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (herein-after called "the council") (that is to say) :—

(1) The Company shall not where any house or building in the administrative county of London shall have been wholly or in part demolished by them leave any adjoining structures or any portion of a partly demolished structure in an unsightly condition for a longer period than is reasonably necessary :

(2) The Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of the works authorised by this Act and whether during or after the construction of the works fronting on any public street in the said county any placards or advertisements except such as shall have been approved in writing by the clerk or other officer of the council and if any such placard or advertisement be affixed or exhibited without such approval the council and their authorised officers may remove the same but this provision shall not prevent the Company from exhibiting on the outside of any building placards giving information to the public as to the traffic or business of the Company.

Confirming
scheduled
agreement.

115. The agreement made between the mayor aldermen and councillors of the metropolitan borough of Islington of the first part the mayor aldermen and burgesses of the borough of Hornsey of the second part the London County Council of the third part and the Company of the fourth part dated the eighteenth day of July one thousand nine hundred and ten as set forth in the Third Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

Powers to
Company
and Great
Northern
and City
Railway
Company as
to supply of
electricity.

116. The Company and the Great Northern and City Railway Company (in this section referred to as "the City Company") may enter into and carry into effect agreements for the supply of electricity by the City Company to the Company and may by any such agreement make such provisions as they may think fit with respect to the basis upon which and the mode in which payment shall be made by the Company to the City Company for any electricity so supplied :

Provided that nothing in this section or in any agreement entered into thereunder shall authorise the City Company to supply electricity for the purpose of running by electrical power any trains over any railway of the Company which the Company are not authorised by an Act of Parliament or by an Order confirmed by or having the effect of an Act of Parliament to work by electrical power : A.D. 1911.

Provided also that nothing in this section contained shall authorise the Company to use electricity supplied by the City Company on any premises in the metropolitan borough of Saint Pancras or in the metropolitan borough of Islington other than those used for railway purposes :

Provided further that any supply of electricity under any agreement made in pursuance of this section and any works executed for the purposes of such agreement shall be subject to all provisions for the protection of the telegraphic lines of the Postmaster-General contained in the Acts of the City Company and that any electricity so supplied shall be used in such a manner as to prevent any interference with telegraphic communication by means of any telegraphic line belonging to or used by the Postmaster-General.

117. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889. Application
of Arbitra-
tion Act
1889.

118. Nothing in this Act contained shall exempt any company named in this Act or the railways of any such company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels. Provision as
to general
Railway
Acts.

119. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of
Act.

A.D. 1911.

THE SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE
TAKEN BY THE COMPANY.

Nos. on Deposited Plans.	Parish or other Area.	Description of Property.
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RAILWAYS AT KNEBWORTH.—RAILWAY (No. 2) AND RAILWAY (No. 3).

10	Parish of Knebworth	- -	Land and occupation road.
15	Do. do.	- -	Garden.

WIDENING FROM DONCASTER TO SHAFTHOLME JUNCTION.

4	Borough of Doncaster	- -	House garden and premises posts and wires.
19	Parish of Bentley-with-Arksey		Field and occupation road.
67	Do. do.		Garden and outbuilding.

WIDENING FROM SAXONDALE JUNCTION TO RADCLIFFE.

7	Parish of Radcliffe-on-Trent	-	Road bridge and land.
8	Do. do.	-	Field pond and footpath.
20	Do. do.	-	Garden greenhouse and out-buildings.
21	Do. do.	-	House garden and summer house.
22	Do. do.	-	Road mains and sewers (Chestnut Grove).
23	Do. do.	-	Garden.

WIDENINGS AT PETERBOROUGH.—WIDENING (No. 1).

6	Parish of Fletton Urban	-	Recreation ground posts and wires.
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WIDENINGS AT PETERBOROUGH.—ALTERATION OF ROADS.

3	Parish of Peterborough Within-		Garden.
4	Do. do.	-	Land and sidings.
7	Do. do.	-	Garden.
8	Do. do.	-	Garden.
9	Do. do.	-	Garden.
27	Do. do.	-	Garden and outbuilding.
28	Do. do.	-	Garden.
29	Do. do.	-	Land and store.
92	Do. do.	-	House garden and premises.
103	Do. do.	-	House garden and premises.

[1 & 2 GEO. 5.] *Great Northern Railway Act, 1911.* [Ch. lxxix.]

A.D. 1911.

Nos. on Deposited Plans.	Parish or other Area.	Description of Property.
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ADDITIONAL LANDS AT LETCHWORTH.

6	Parish of Letchworth	- - Land and young fruit trees.
7	Do. do.	- - Garden.
8	Do. do.	- - Garden and shed.
9	Do. do.	- - Garden.
10	Do. do.	- - Land and young fruit trees.
11	Do. do.	- - Land and young fruit trees.
12	Do. do.	- - Land and young fruit trees.
13	Do. do.	- - Land and young fruit trees.
14	Do. do.	- - Nursery garden.
17	Do. do.	- - Sheds and land.

ADDITIONAL LANDS AT BALDERTON.

10	Parish of Balderton	- - Garden.
19	Do. do.	- - Garden.

ADDITIONAL LANDS AT KING'S CROSS.

1	Parish of St. Pancras	- - Gasworks (in course of demolition) basin roadways yards offices wharves buildings sheds and premises.
2	Do. do.	- - Private road and bridge over railways.

ADDITIONAL LANDS AT STROUD GREEN.

5	Parish of Islington	- - Land.
6	Parish of Hornsey	- - Strip of land.

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THE SECOND SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE TAKEN
BY THE TWO COMPANIES.

Nos. on Deposited Plans.	Parish or other Area.	Description of Property.
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WEST RIDING AND GRIMSBY RAILWAY.

WIDENING FROM DONCASTER TO ADWICK JUNCTION.
WIDENING No. 1.

133	Parish of Bentley-with-Arksey-	Land.
141	Do. do. -	Yard and shed.
143	Do. do. -	Garden.

WIDENING FROM ADWICK JUNCTION TO HEMSWORTH SOUTH JUNCTION.
WIDENING No. 2.

32	Parish of Hampole -	House garden and premises.
2A	Parish of South Elmsall -	Land.
4	Do. do. -	Land and occupation road.
11	Do. do. -	Land sidings and sheds.
33	Do. do. -	Yard and outbuildings.
34	Do. do. -	Garden and pigstye.
35	Do. do. -	Malthouse.
38	Do. do. -	Land and stream.
19	Parish of South Kirkby -	Garden.
20	Do. do. -	Yard and outbuildings.

WIDENING FROM HEMSWORTH SOUTH JUNCTION TO NOSTELL SOUTH JUNCTION.
WIDENING No. 3.

57	Parish of Hemsworth -	Garden and greenhouse.
65	Do. do. -	Garden and outbuildings.
69	Do. do. -	House garden land and outbuildings.

THE THIRD SCHEDULE.

A.D. 1911.

AN AGREEMENT made the eighteenth day of July one thousand nine hundred and ten between The Mayor Aldermen and Councillors of the Metropolitan Borough of Islington (herein-after called "the Borough Council") of the first part The Mayor Aldermen and Burgesses of the Borough of Hornsey in the County of Middlesex (herein-after called "the Corporation") of the second part The London County Council of the third part and The Great Northern Railway Company (herein-after called "the Company") of the fourth part.

Stamp.

Ten
shillings.

WHEREAS by the Great Northern Railway Act 1894 (section 13) it was enacted as follows:—

- " The Company shall replace the bridges at present carried on piers over
" Seven Sisters Road by iron girder bridges of one clear span over
" such road within twelve months from the date of the completion
" of the new bridges over the said road and shall replace the bridges
" at present carried on piers over Stroud Green Road by iron girder
" bridges of one clear span over such road within ten years from
" the date of the passing of this Act and as every such bridge shall
" be so replaced the piers now carrying the same shall be removed
" and the sites thereof shall be thrown into and form part of the
" public highway."

And by section 18 of the said Act it was (inter alia) enacted as follows:—

- " All works to be executed under the powers of this Act in the
" parish of St. Mary Islington shall as between the Company
" and the vestry of the said parish be subject to the following
" provisions":—

* * * * *

- " (9) The underside of the proposed bridges shall be so con-
" structed as to effectually carry all drainage and water
" away and so that there shall be no leakage on the
" public carriageways or footways and shall be main-
" tained in such condition at the expense of the Com-
" pany All visible surfaces of the abutments of the
" proposed bridges and of the abutments of the existing
" bridges over Seven Sisters Road Stroud Green Road
" and Wells Terrace and of the walls between such
" abutments and the surfaces next the footways of the
" piers of the existing bridges over Stroud Green Road
" shall be faced at the expense of the Company with

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“ the best white glazed bricks and so maintained in
“ perpetuity to the reasonable satisfaction of the vestry
“ And screens shall be affixed and kept affixed at the
“ sides of the said bridges :

“ (10) The Company shall replace the bridges at present
“ carried on piers over Seven Sisters Road by iron
“ girder bridges of one clear span over such road within
“ twelve months from the date of the completion of
“ the new bridges over the said road and shall replace
“ the bridges at present carried on piers over Stroud
“ Green Road by iron girder bridges of one clear span
“ over such road within ten years from the date of the
“ passing of this Act” :

* * * * *

“ (13) The Company shall save harmless the said vestry against
“ all and every expenses to be occasioned by the works
“ of the Company and such works shall be executed
“ under the direction superintendence and control of
“ the surveyor of the said vestry at the cost in all
“ respects of the said Company.”

And whereas the Company have not constructed the bridges referred to in the said section 13 as “the new bridges” and in the said section 18 as “the proposed bridges” and questions have consequently arisen between the parties as to how far the obligations imposed on the Company by sections 13 and 18 of the said Act have become operative And whereas the Company are willing to remove the existing bridges carried on piers over the said roads and also the said piers and to construct new bridges over the said roads in accordance with plans numbered one to four (inclusive) and specifications numbered one and two (such plans and specifications being signed for the purpose of identification as to the Stroud Green Road bridges by James Patten Barber the engineer of the Borough Council Edwin James Lovegrove the engineer of the Corporation and Alexander Ross the engineer of the Company and as to the Seven Sisters Road bridges by the said James Patten Barber and Alexander Ross) and to execute the works herein-after mentioned upon the terms and conditions herein-after appearing Now it is hereby agreed by and between the parties hereto as follows :—

1. The Company shall within twelve calendar months from the date hereof remove the existing bridges at present carried on piers over Seven Sisters Road and Stroud Green Road and also the said piers and shall within such time construct new bridges over the said roads in lieu of the said bridges so removed of the spans and headways respectively shown on and in accordance in all respects with the said signed plans and specifications and the sites of the said piers shall be thrown into and form part of the public highways.

[1 & 2 GEO. 5.] *Great Northern Railway Act, 1911.* [Ch. lxxix.]

2. The Company shall at their own expense well and sufficiently kerb A.D. 1911.
pave and make up the said sites as parts of the said roadways with the best
materials similar to those in use in the adjoining portions of the said road-
ways and the Borough Council shall for ever thereafter maintain the same
and shall indemnify the Company against any expenses in connection with
such maintenance.

3. The Company may construct on the north-west side of the existing
Stroud Green Road bridges and also on the south-west side of the existing
Seven Sisters Road bridges a single line bridge of the spans and headways
respectively shown on and in accordance with the said signed plans and speci-
fications and so constructed as to be watertight (such two single line bridges
being herein-after called "the additional bridges").

4. The Company shall on the south-western side of Stroud Green Road
between the points marked A and B on the said signed plan numbered three
and on the north-eastern side of Stroud Green Road between the points
marked C and D on the said signed plan numbered three face the bottom
of the abutments of their bridges (including the additional bridges) and the
bottom of the walls between such abutments with Staffordshire blue bricks
not more than four and three-quarter inches wide (to a height of two feet
or thereabouts from the level of the footway) as shown on the said signed
plans and shall face such walls and abutments above the blue Staffordshire
bricks with two and a half inch white glazed bricks to the extent shown
on the said signed plans. In the case of the existing abutments and walls
the said blue Staffordshire and white glazed bricks shall be so fixed to such
existing face as to leave a cavity not exceeding one and a half inches between
the new bricks and such existing face to provide the necessary drainage for
the water which may form between the new bricks and such face as shown on
the said plans. On the completion of the work provided for by this Agree-
ment the Borough Council and the Corporation shall each pay the Company
one hundred and twelve pounds ten shillings towards the cost of the works
hereby agreed to be executed by the Company.

5. The Company shall at all times maintain the said bridges (including
the said additional bridges) and the said white glazed bricks in good and
complete order repair and condition and watertight to the reasonable satis-
faction of the Borough Council and the Corporation.

6. The Company shall keep the brick facings provided for by clause 4
hereof free from advertisements and placards and other materials of every
description and the Borough Council shall at their own expense keep the
said brick facing on the south-western side of Stroud Green Road properly
washed and cleaned and the Corporation shall at their own expense keep
the said brick facing on the north-eastern side of Stroud Green Road
properly washed and cleaned.

7. If any dispute or difference shall arise between the parties hereto
or any of them with reference to the sufficiency of any works to be executed

[Ch.lxxix.] *Great Northern Railway Act, 1911.* [1 & 2 GEO. 5.]

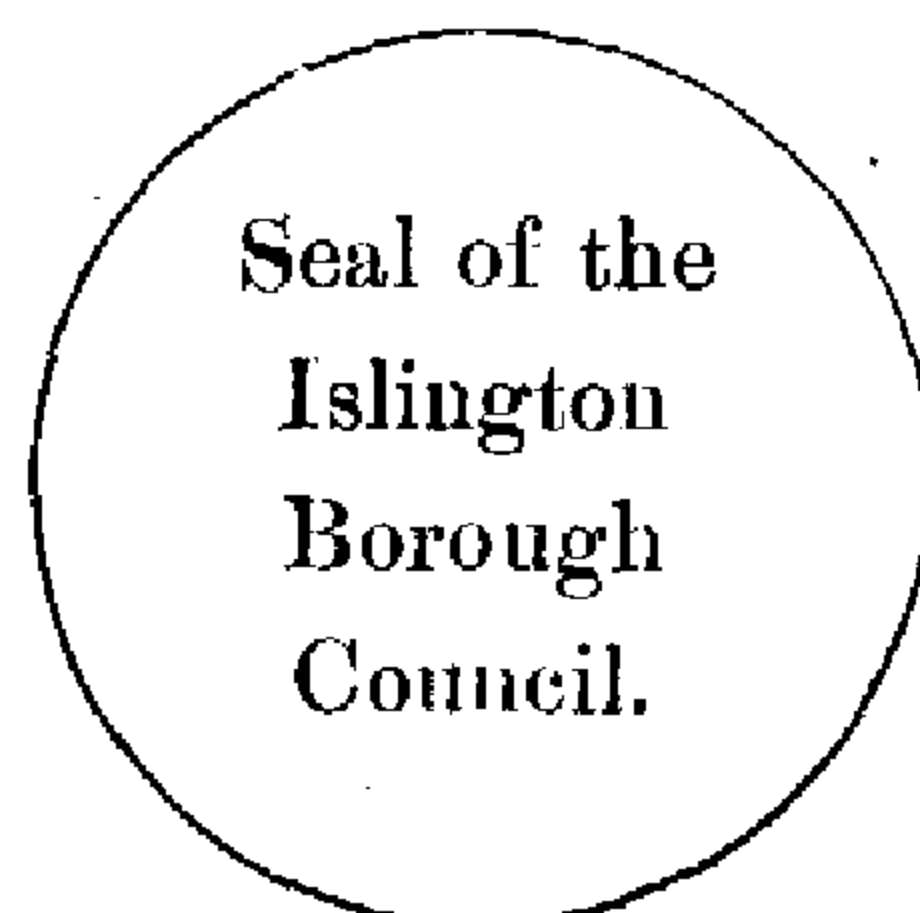
A.D. 1911. by the Company under this Agreement the same shall (unless otherwise agreed) be referred to the arbitration of some person to be nominated by the President for the time being of the Board of Trade and such arbitration shall be subject to the provisions of the Arbitration Act 1889 or any statutory modification thereof for the time being in force.

In witness whereof the parties hereto have caused their respective Common Seals to be hereunto affixed the day and year first above written.

The Common Seal of the Mayor Aldermen and Councillors of the Metropolitan Borough of Islington was hereunto affixed in the presence of

H. J. CLARKE
Mayor.

WM. F. DEWEY
Town Clerk.



The Common Seal of the Mayor Aldermen and Burgesses of the Borough of Hornsey was hereunto affixed in the presence of

WALTER GASKELL
Mayor.

F. D. ASKEY
Town Clerk.



The Common Seal of the Great Northern Railway Company was hereunto affixed in the presence of

FRANCIS MOWATT
Director.



Sealed by order.

G. L. GOMME
Clerk of the Council.



THE FOURTH SCHEDULE.

A.D. 1911.

Stamp.

Ten
shillings.

AN AGREEMENT made the third day of April one thousand nine hundred and eleven between the Muswell Hill and Palace Railway Company (herein-after called "the Palace Company") of the one part and the Great Northern Railway Company (herein-after called "the Great Northern Company") of the other part WHEREAS under the Muswell Hill Estate and Railways Act 1866 and the Muswell Hill Estate and Railways Act 1871 the Muswell Hill Estate Company Limited constructed a certain railway (herein-after called "the Palace Railway") commencing with a station known as the Alexandra Palace Station and terminating by a junction with the system of the Great Northern Company at the Muswell Hill Station of the Great Northern Company And whereas by the Muswell Hill and Palace Railway Act 1886 the Palace Railway was vested in the Palace Company who were thereby incorporated as a separate company And whereas the share and loan capital of the Palace Company actually issued under the said Acts and now subsisting consists of seventy thousand pounds ordinary stock and ten thousand pounds four per centum debenture stock and two thousand five hundred and thirty pounds bonds of indebtedness And whereas under or by virtue of the said Act of 1866 an agreement made the eighth day of August one thousand nine hundred and four between the Palace Company of the first part the Great Northern Company of the second part and the London and Middlesex Freehold Estates Company Limited of the third part and an order of the court of the Railway and Canal Commission dated the twenty-sixth day of July one thousand nine hundred and five the Great Northern Company are using the Palace Railway and paying the Palace Company for such user the sum of seven hundred and fifty pounds per annum And whereas the Great Northern Company some time since expended a sum of one thousand five hundred and eighty-four pounds on the improvement of the Alexandra Palace Station and the Palace Company have since been paying the Great Northern Company interest at the rate of five per centum upon the said sum of one thousand five hundred and eighty-four pounds And whereas the Palace Company are desirous of selling and subject to the sanction of Parliament the Great Northern Company are willing to purchase the Palace Railway on the terms and

A.D. 1911.

conditions herein-after appearing Now these presents witness and it is hereby agreed as follows :—

1. Subject as herein-after appears the Palace Company shall sell and the Great Northern Company shall purchase freed and discharged from the said debenture stock and bonds of indebtedness and from all rent charges liens claims of landowners and others and from all debentures debenture stock mortgages unpaid purchase moneys bonds and other incumbrances upon or affecting the undertaking and from all debts and liabilities of the Palace Company (if any) affecting the same (other than liabilities under continuing contracts) and free from all easements and restrictive covenants All and singular the undertaking and property of the Palace Company as herein-after defined The consideration for the said purchase shall be the release by the Great Northern Company of the said sum of one thousand five hundred and eighty-four pounds and the payment by the Great Northern Company of the sum of eighteen thousand four hundred and sixteen pounds and the sum of five hundred pounds as herein-after mentioned and all over-paid interest on the said sum of one thousand five hundred and eighty-four pounds as provided by clause 3 hereof.

2. The said undertaking and property of the Palace Company (herein-after called "the undertaking") includes—

- (A) The whole of the railways belonging to the Palace Company with all stations works conveniences equipment plant and appliances appertaining thereto together with such interest (if any) as the Palace Company may have in the booking offices and other rooms in the Alexandra Palace which are used in connection with the undertaking but are the property of the Alexandra Park Trustees :
- (B) All lands (including all superfluous lands if any) and property belonging to the Palace Company and all rights and easements belonging to the Palace Company or appurtenant to such lands :
- (C) The benefit of all contracts and agreements entered into by the Palace Company :
- (D) All powers privileges authorities exemptions and all other rights and interests of the Palace Company whatsoever whether statutory or otherwise :
- (E) All estates matters and things of every kind and description belonging to the Palace Company except the purchase money payable hereunder and any moneys in hand or due to the Palace Company on the date of completion.

3. Up to the fourteenth day of August one thousand nine hundred and eleven (herein-after called "the date of transfer") the Great Northern Company shall continue to use the Palace Railway on the terms prescribed by the said agreement and order except that no deduction shall be made as from the first day of July one thousand nine hundred and ten in respect of

interest on the said sum of one thousand five hundred and eighty-four pounds and all interest that shall have been paid by the Palace Company as from the last-mentioned date shall be returned to the Palace Company by the Great Northern Company. A.D. 1911.

4. The Palace Company shall on or before the thirtieth day of June one thousand nine hundred and eleven produce to the Great Northern Company all conveyances in the possession of the Palace Company and in case it shall appear to the Great Northern Company that there are any lands used for the purposes of the undertaking which are not comprised in such conveyances the Palace Company shall only be required to furnish to the Great Northern Company a statutory declaration to be made by one of the directors and the secretary of the Palace Company that to the best of their knowledge and belief during the last twelve years the Palace Company has not paid any rent or made any acknowledgment to any person in respect of the same.

5. Provision shall be made by the Bill herein-after referred to for payment of the said sum of eighteen thousand four hundred and sixteen pounds to a liquidator within fourteen days after his appointment or otherwise as Parliament may direct and for vesting the undertaking as from the date of transfer in the Great Northern Company freed and discharged from all rent charges liens claims of landowners and others mortgages unpaid purchase moneys bonds and other incumbrances upon or affecting the undertaking and from all easements and restrictive covenants affecting the undertaking and from all debts liabilities obligations and engagements of the Palace Company (except under continuing contracts) and from all claims and demands whatsoever on the part of any of the creditors of the Palace Company or of any other person or persons in respect of any debt or liability of the Palace Company or of the holders of debenture stock bonds of indebtedness or ordinary stock of the Palace Company and on the date of transfer the Palace Company shall deliver to the Great Northern Company all plans deeds books papers and documents whatsoever in their possession relating to the undertaking and shall execute and at their own expense procure all necessary parties to join in executing such assurance or assurances (if any) as shall be necessary for conveying the undertaking to the Great Northern Company freed and discharged as aforesaid and all such other assurance or assurances (if any) as shall be prescribed by the said Act to give effect to these presents Provided always that the Great Northern Company will free of cost to the Palace Company allow the Palace Company access to such of the said plans deeds books papers and documents as shall be required by the Palace Company for winding up or otherwise.

6. A receipt under the hand of the liquidator to be appointed for winding up the affairs of the Palace Company or such other receipt as Parliament may prescribe shall be a sufficient discharge to the Great Northern Company for the said sum of eighteen thousand four hundred and sixteen pounds and the Great Northern Company shall not be concerned to see to the application thereof or be answerable for the mis-application or non-application thereof.

A.D. 1911. 7. Notwithstanding anything contained in Part V. (relating to amalgamation of the Railways Clauses Act 1863) the Great Northern Company shall not be under any obligation to take over the secretary or any clerk officer or servant of the Palace Company.

8. The directors and other officials of the Palace Company shall at the expense of the Palace Company attend to give evidence in or about any proceedings which the Great Northern Company may think necessary or desirable to take for the purpose of obtaining statutory powers to carry this Agreement into effect and for the purpose of enabling the Palace Company to carry out and complete such sale.

9. The Palace Company shall bear and pay their own costs charges and expenses of and in relation to the negotiation for and the preparation and execution of this Agreement and of carrying out and completing the sale and purchase hereby agreed to be made and all costs charges and expenses of or incidental to the winding up of the Palace Company and the payment out of court or otherwise and the distribution of the said sum of eighteen thousand four hundred and sixteen pounds and overpaid interest. But the Great Northern Company shall contribute towards such costs charges and expenses the sum of five hundred pounds and a receipt under the hand of the secretary of the Palace Company shall be a sufficient discharge to the Great Northern Company for the said sum of five hundred pounds and for the said overpaid interest both of which said sums shall be payable on the date of transfer and the Great Northern Company shall not be concerned to see to the application thereof or be answerable for the mis-application or non-application thereof.

10. After the date of transfer the Palace Company shall exist only for the purpose of the winding up of their affairs and the distribution of the purchase money.

11. The Great Northern Company will at their own expense in their pending Bill for general powers relating to their own undertaking apply for the necessary powers and provisions for carrying this Agreement into effect and the Palace Company will if so required by the Great Northern Company support the said Bill to the extent set out in clause 8 hereof. Provided always that nothing herein contained shall be construed as imposing an obligation on the Great Northern Company to proceed with such Bill and they shall be at liberty if they so desire at any time to withdraw the said Bill or Part VII. thereof.

12. This Agreement is provisional upon a Bill containing such powers and provisions as aforesaid receiving the sanction of Parliament in the present Session and in the event of either House of Parliament inserting in the said Bill any provision materially at variance with any provision in this Agreement or imposing on either party any obligation which such party shall be unwilling to incur it shall be in the option of either party by notice in writing to the other to withdraw from the same and thereupon this Agreement shall become void.

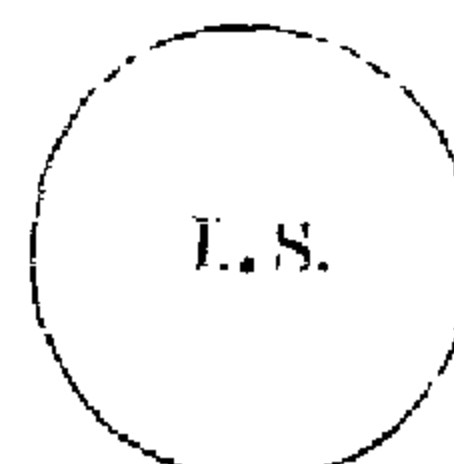
[1 & 2 GEO. 5.] *Great Northern Railway Act, 1911.* [Ch. lxxix.]

In witness whereof the Palace Company and the Great Northern Company have caused their respective Common Seals to be hereunto affixed the day and year first before written. A.D. 1911.

The Common Seal of the Muswell Hill and Palace
Railway Company was hereunto affixed in the
presence of

C. J. HAYTER

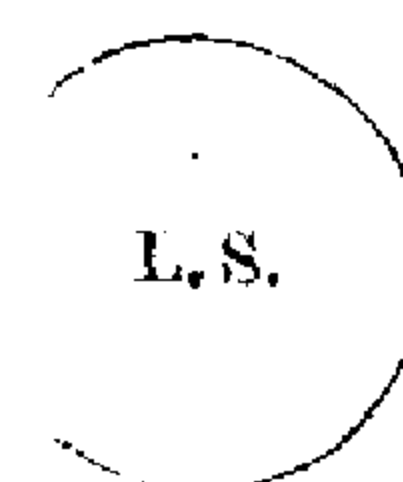
Secretary.



The Common Seal of the Great Northern Railway
Company was hereunto affixed in the presence of

H. OAKLEY

Director.



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ROWLAND BAILEY, Esq., M.V.O., the King's Printer of Acts of Parliament.

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1. The first part of the report is a summary of the work done during the year.

2. The second part is a detailed account of the work done during the year, and is divided into three sections: (a) the work done during the first half of the year, (b) the work done during the second half of the year, and (c) the work done during the year as a whole.

3. The third part is a summary of the work done during the year, and is divided into three sections: (a) the work done during the first half of the year, (b) the work done during the second half of the year, and (c) the work done during the year as a whole.

4. The fourth part is a summary of the work done during the year, and is divided into three sections: (a) the work done during the first half of the year, (b) the work done during the second half of the year, and (c) the work done during the year as a whole.

5. The fifth part is a summary of the work done during the year, and is divided into three sections: (a) the work done during the first half of the year, (b) the work done during the second half of the year, and (c) the work done during the year as a whole.

6. The sixth part is a summary of the work done during the year, and is divided into three sections: (a) the work done during the first half of the year, (b) the work done during the second half of the year, and (c) the work done during the year as a whole.